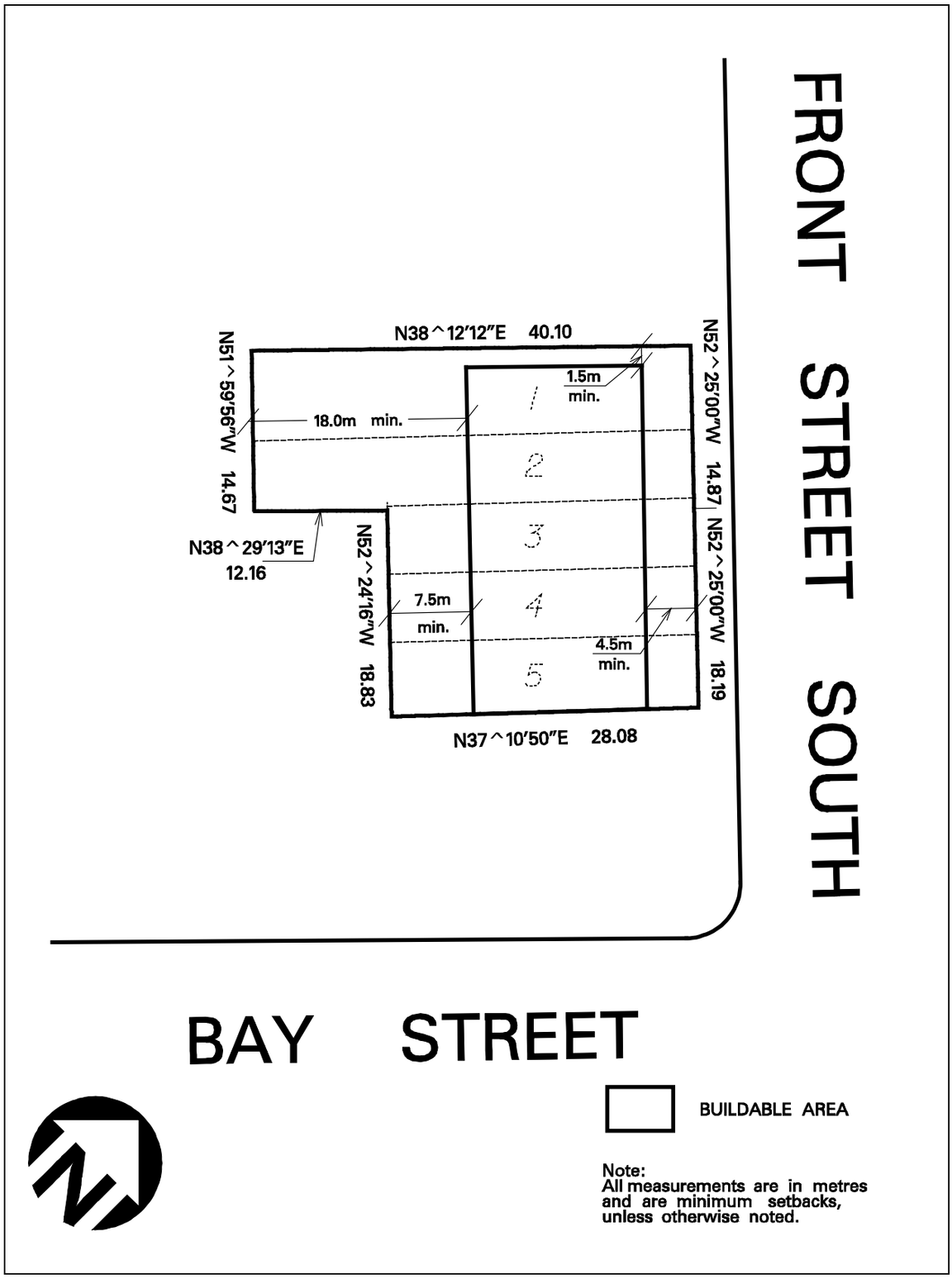
6.2.5 C4 Exception Zones

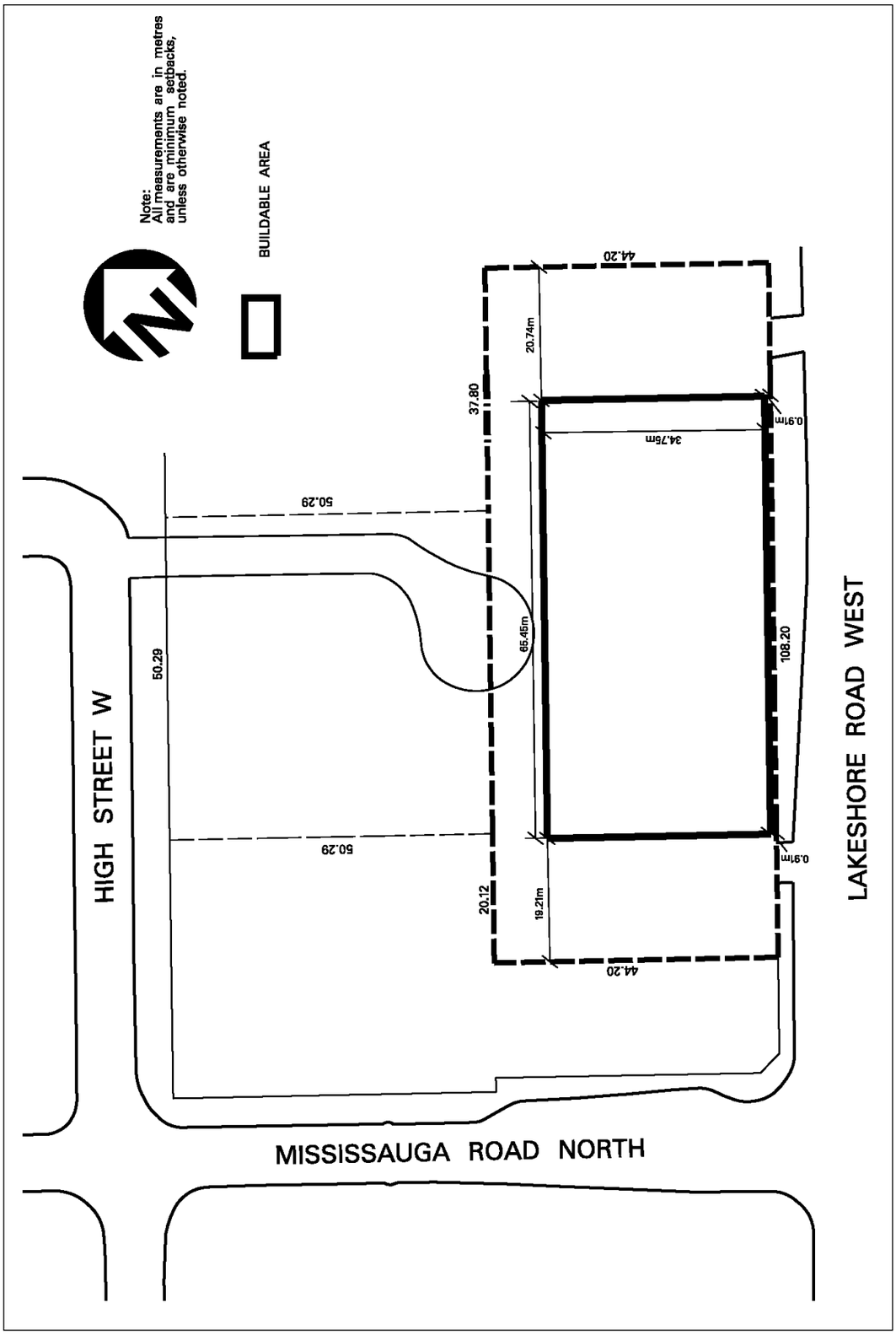
Refer to Article 1.1.2.3 - Exception Zones and Exception Zone Schedules

6.2.5.1	Exception: C4-1	Map # 08	By-law: 0181-2018/LPAT Order 2019 February 15
In a C4-1 zone the applicable regulations shall be as specified for a C4 zone except that the following **uses**/regulations shall apply:			
Permitted Use			
6.2.5.1.1	Lands zoned C4-1 shall only be used for the following: (1) **Street Townhouse**		
Regulations			
6.2.5.1.2	Minimum **lot area**		170 m^2
6.2.5.1.3	Minimum **lot frontage**		6.2 m
6.2.5.1.4	Maximum encroachment of a **porch** and **deck** into required **yards**		1.8 m
6.2.5.1.5	Stairs may project into required **yards**		
6.2.5.1.6	Maximum **height** of any **street townhouse**		15.0 m
6.2.5.1.7	Every **dwelling unit** shall have a **garage**		
6.2.5.1.8	Minimum area of a **garage**		27 m^2
6.2.5.1.9	Minimum setback of a **garage** to any **street**		5.5 m
6.2.5.1.10	All site development plans shall comply with Schedule C4-1 of this Exception		



Schedule C4-1
Map 08

6.2.5.2	Exception: C4-2	Map # 08	By-law: 0325-2008, 0174-2017
In a C4-2 zone the permitted **uses** and applicable regulations shall be as specified for a C4 zone except that the following **uses**/regulations shall apply:			
Regulations			
6.2.5.2.1	Maximum **height** of an **apartment** legally **existing** on the date of passing of this By-law		19 **storeys**
6.2.5.2.2	All site development plans shall comply with Schedule C4-2 of this Exception		



Schedule C4-2
Map 08

6.2.5.3	Exception: C4-3	Map # 08	By-law: 0126-2015, 0174-2017, 0086-2018, 0208-2022, 0217-2023, 0199-2024

In a C4-3 zone the applicable regulations shall be as specified for a C4 zone except that the following **uses**/regulations shall apply:

Permitted Uses

6.2.5.3.1 Lands zoned C4-3 shall only be used for the following:

(1) **Apartment**
(2) **Retirement Building**
(3) **Office**
(4) **Medical Office - Restricted**
(5) **Retail Store**
(6) Barber shop, hairdressing or beauty salon
(7) Dressmaking or tailoring establishment
(8) Tanning Salon
(9) **Parking Lot**
(10) **Financial Institution**
(11) **Restaurant**
(12) **Take-out Restaurant**
(13) *deleted*
(14) Parking required for lands zoned C4-5, C4-6 and RA2-33

Regulations

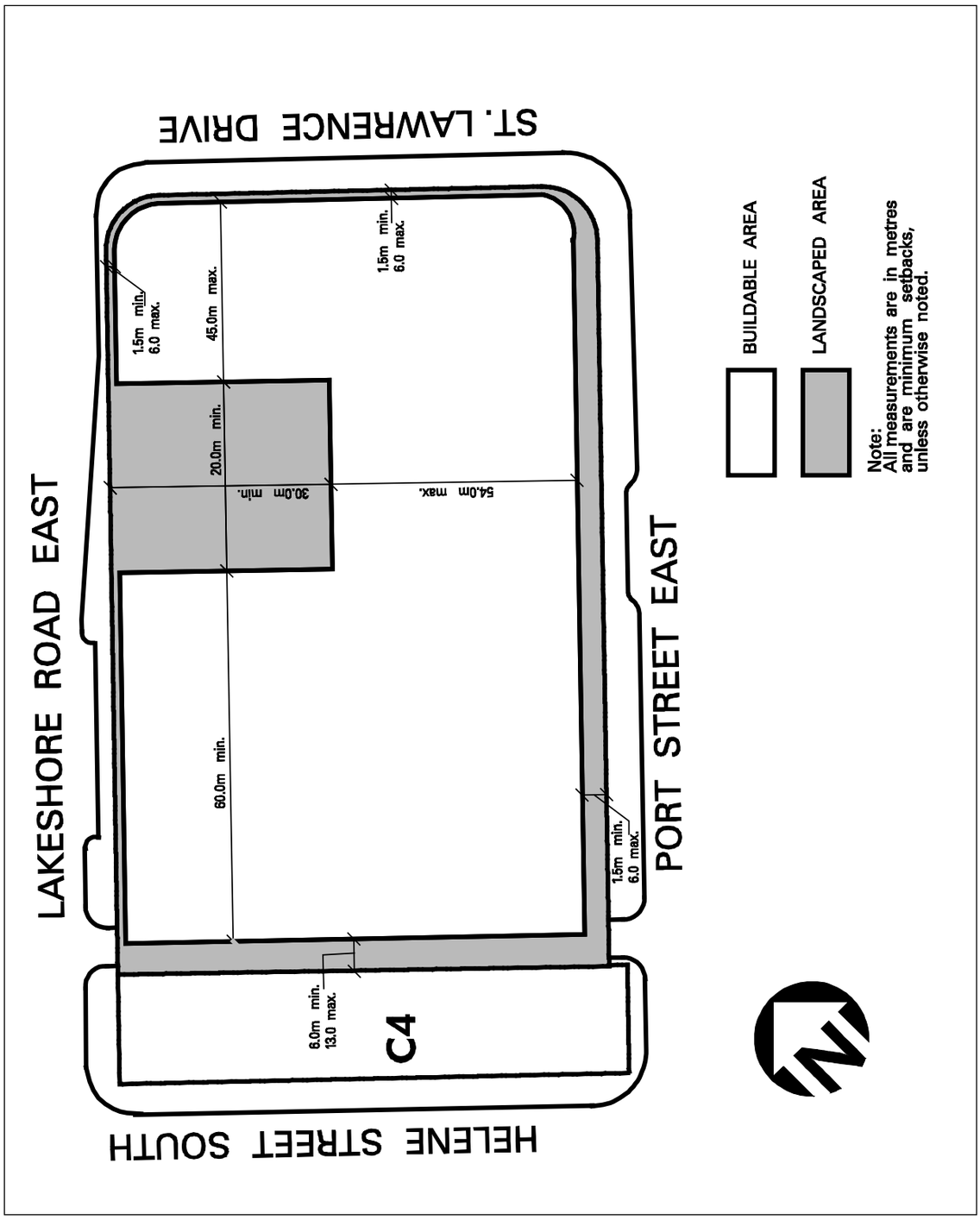
6.2.5.3.2	Maximum number of apartment **dwelling units** or **retirement dwelling units**, or any combination thereof	150
6.2.5.3.3	Combined maximum **gross floor area - residential** and **gross floor area - non-residential**	25 400 m^2
6.2.5.3.4	Maximum **gross floor area - residential** of all **buildings** and **structures** used for **apartments** or **retirement buildings**, or any combination thereof	19 050 m^2
6.2.5.3.5	Maximum **gross floor area - non-residential** of a **retail store** used for a food store	600 m^2
6.2.5.3.6	Maximum **gross floor area - non-residential** used for **office**, **medical office - restricted**, **retail store**, barber shop, hairdressing and beauty salon, dressmaking or tailoring establishment, tanning salon, **financial institution**, **restaurant** or **take-out restaurant**	8 600 m^2
6.2.5.3.7	That portion of the **first storey** of any **building** or **structure** located within 9.0 m of Lakeshore Road East shall only be used for an **office**, **medical office - restricted**, **retail store**, **restaurant**, **take-out restaurant**, barber shop and hairdressing and beauty salon, dressmaking or tailoring establishment or tanning salon, or any combination thereof	
6.2.5.3.8	Minimum **landscaped area**	15% of **lot area**

6.2.5.3.9 The maximum **height** measured at the centreline of Lakeshore Road East right-of-way and the maximum number of **storeys**, excluding any mechanical penthouse or roof top equipment, for any **building** or **structure** or part thereof, as identified on Schedule C4-3 referred to in Sentence 6.2.5.3.19 of this Exception, shall comply to the following requirements:

DISTANCE from Lakeshore Road East right-of-way	MAXIMUM HEIGHT highest ridge: sloped roof	MAXIMUM HEIGHT flat roof	STOREYS
less than 15.0 m	16.0 m	12.0 m	2
15.0 m or greater	29.0 m	24.0 m	6

Exception C4-3 continued next page

6.2.5.3	Exception: C4-3	Map # 08	By-law: 0126-2015, 0174-2017, 0086-2018, 0208-2022, 0217-2023, 0199-2024
Exception C4-3 continued from previous page			
6.2.5.3.10	Required public **parking spaces**		43
6.2.5.3.11	Minimum setback of **motor vehicle** surface parking and loading facilities from any **street line**		6.0 m
6.2.5.3.12	Any **parking structure** or part thereof shall be located wholly below the ground level measured at the centreline of Lakeshore Road East		
6.2.5.3.13	Minimum setback of a **parking structure** from any **lot line**		0.3 m
6.2.5.3.14	Minimum setback of all **buildings** and **structures** used for residential purposes to Hurontario Street and Port Street East		4.5 m
6.2.5.3.15	Notwithstanding Schedule C4-3 of this Exception, the minimum setback of all commercial **uses** to Port Street East shall be		1.5 m
6.2.5.3.16	Notwithstanding Schedule C4-3, a maximum of one **building** or **structure** on a **lot** may be set back beyond the maximum requirements for two sides of a **building** or **structure** only		
6.2.5.3.17	Notwithstanding Schedule C4-3 of this Exception, awnings may project beyond the **buildable area** a maximum of 0.60 m into any **landscaped area** identified on Schedule C4-3 of this Exception		
6.2.5.3.18	Notwithstanding Article 6.1.1.1 of this By-law, retail sales accessory to a Commercial, Service or Office **use** contained in Table 6.2.1 of this By-law are permitted within the **yard** abutting Lakeshore Road East as a temporary use for the period of three years from the date of enactment and passing of this By-law (May 9, 2018)		
6.2.5.3.19	All site development plans shall comply with Schedule C4-3 of this Exception		



Schedule C4-3
Map 08

6.2.5.4	Exception: C4-4	Map # 07	By-law: OMB Order 2008 May 08, 0126-2015, 0174-2017, 0086-2018
In a C4-4 zone the permitted **uses** and applicable regulations shall be as specified for a C4 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Uses			
6.2.5.4.1	(1) **Gas Bar** (2) **Motor Vehicle Wash Facility - Restricted**		
Uses Not Permitted			
6.2.5.4.2	On a **lot** with a **gas bar** and/or **motor vehicle wash facility - restricted** the following **uses** shall not be permitted: (1) **Apartment** (2) **Dwelling unit** located above the **first storey** of a commercial **building**		
Regulations			
6.2.5.4.3	Minimum depth of **landscaped area** adjacent to Lakeshore Road East		3.0 m
6.2.5.4.4	Minimum **front yard** for **convenience retail and service kiosk structure**		3.0 m
6.2.5.4.5	Minimum **front yard** to weather canopy		3.0 m
6.2.5.4.6	Minimum **front yard** to **motor vehicle wash - restricted structure**		18.5 m
6.2.5.4.7	Minimum easterly side **yard**		3.8 m
6.2.5.4.8	Minimum westerly side **yard**		0.3 m
6.2.5.4.9	Notwithstanding Article 6.1.1.1 of this By-law, retail sales accessory to a Commercial, Service or Office **use** contained in Table 6.2.1 of this By-law, and outdoor patios accessory to a **restaurant** and **take-out restaurant**, are permitted within the **yard** abutting Lakeshore Road East as a temporary use for the period of three years from the date of enactment and passing of this By-law (May 9, 2018)		

6.2.5.5	Exception: C4-5	Map # 07	By-law: 0308-2011, 0126-2015, 0086-2018, 0181-2018/LPAT Order 2019 February 15, 0199-2024
In a C4-5 zone the applicable regulations shall be as specified for a C4 zone except that the following **uses**/regulations shall apply:			
Permitted Uses			
6.2.5.5.1	Lands zoned C4-5 shall only be used for the following: (1) **Townhouse** (2) **Office** (3) **Medical Office - Restricted** (4) Retail Store (5) Dressmaking or tailoring establishment (6) **Repair Service**		
Use Not Permitted			
6.2.5.5.2	(1) Pet Shop		

Exception C4-5 continued on next page

6.2.5.5	Exception: C4-5	Map # 07	By-law: 0308-2011, 0126-2015, 0086-2018, 0181-2018/LPAT Order 2019 February 15, 0199-2024

Exception C4-5 continued from previous page

Regulations

6.2.5.5.3	The provisions contained in Subsection 6.1.5 of this By-law shall not apply	
6.2.5.5.4	Maximum number of townhouse **dwelling units**	18
6.2.5.5.5	An **office**, **medical office - restricted**, retail store, dressmaking or tailoring establishment or **repair service** shall only be located wholly within a **building** principally used for **townhouses**, in addition to any other requirement of this Exception, and shall comply with the following requirements:	
	(1) any **office**, **medical office - restricted**, retail store, dressmaking or tailoring establishment or **repair service** shall be located only within the **first storey**	
	(2) for any townhouse **dwelling unit**, a maximum of one **office** or one **medical office - restricted** or one retail store or one dressmaking or tailoring establishment or one **repair service** shall be permitted	
	(3) for any townhouse **dwelling unit**, the maximum **gross floor area - non-residential** of any **office**, **medical office - restricted**, retail store, dressmaking or tailoring establishment or **repair service** shall be	65 m^2
	(4) for any townhouse **dwelling unit**, the minimum **gross floor area - non-residential** of any **office**, **medical office - restricted**, retail store, dressmaking or tailoring establishment or **repair service** shall be	30 m^2
6.2.5.5.6	That portion of the **first storey** area of any **building** or **structure** located within 6.0 m of Lakeshore Road East shall only be used for an **office**, **medical office - restricted**, retail store, dressmaking or tailoring establishment or **repair service**, or any combination thereof	
6.2.5.5.7	The minimum **gross floor area - non-residential** required by Clause 6.2.5.5.5(4) of this Exception must be developed concurrent with a **townhouse**	
6.2.5.5.8	Maximum **gross floor area - non-residential** used for all **offices**, **medical offices - restricted**, retail stores, dressmaking or tailoring establishments and **repair services**	720 m^2
6.2.5.5.9	Maximum **gross floor area - residential** of **townhouses**	4 300 m^2
6.2.5.5.10	Minimum **landscaped area**	20% of **lot area**
6.2.5.5.11	Maximum **height**:	
	(1) from **established grade** to the highest ridge of a **sloped roof**	16.0 m and 3 **storeys**
	(2) from **established grade** to the top of a **flat roof**	12.5 m and 3 **storeys**
6.2.5.5.12	The **lot line** abutting Lakeshore Road East shall be deemed to be the **front lot line**	
6.2.5.5.13	The **lot line** opposite the **front lot line** shall be deemed to be the **rear lot line**	
6.2.5.5.14	Maximum projection of a **porch** into a required **yard**	1.5 m
6.2.5.5.15	Maximum projection of awnings into a required **yard**	0.3 m
6.2.5.5.16	Maximum projection of windows with or without a foundation, pilasters, corbels, cornice, belt course, sill, or balustrade into a required **yard**	0.6 m

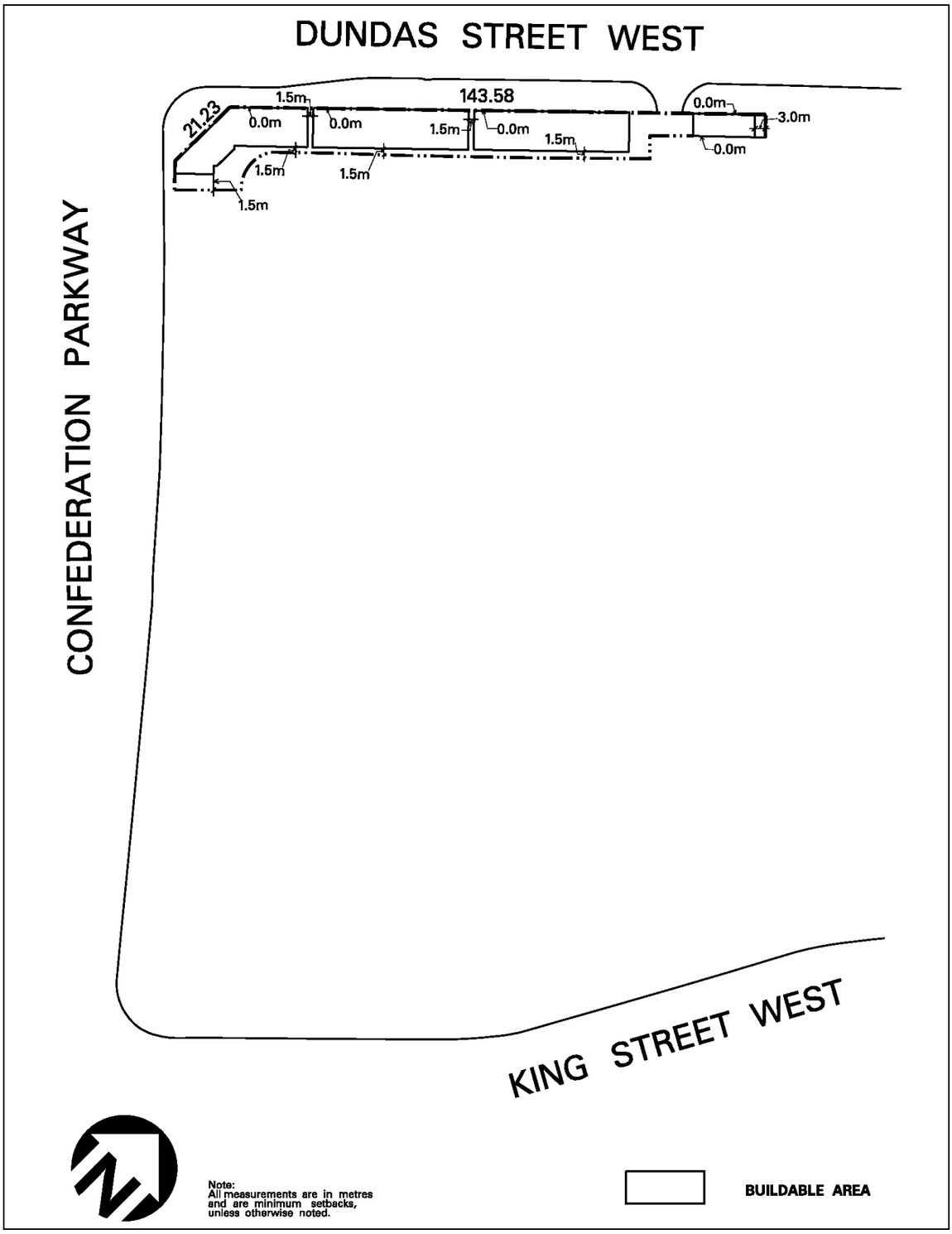
Exception C4-5 continued on next page

6.2.5.5	Exception: C4-5	Map # 07	By-law: 0308-2011, 0126-2015, 0086-2018, 0181-2018/LPAT Order 2019 February 15, 0199-2024
Exception C4-5 continued from previous page			
6.2.5.5.17	Maximum projection of a **balcony** into the required **rear yard** or **exterior side yard**		1.2 m
6.2.5.5.18	Maximum **garage** width: from the inside face of the **garage** side walls		3.2 m
6.2.5.5.19	Maximum **driveway** width		3.2 m
6.2.5.5.20	"Retail Store" means a **building**, **structure** or part thereof, in which goods are offered for sale, lease and/or rental to consumers. Where the primary function of the retail store is the sale of food, food shall not be produced or prepared on the premises and shall not be offered for sale to the public for consumption on the premises.		
6.2.5.5.21	Notwithstanding Article 6.1.1.1 of this By-law, retail sales accessory to a Commercial, Service or Office **use** contained in Table 6.2.1 of this By-law are permitted within the **yard** abutting Lakeshore Road East as a temporary use for the period of three years from the date of enactment and passing of this By-law (May 9, 2018)		

6.2.5.6	Exception: C4-6	Map # 07	By-law: 0126-2015, 0086-2018, 0199-2024
In a C4-6 zone the applicable regulations shall be as specified for a C4 zone except that the following **uses**/regulations shall apply:			
Permitted Uses			
6.2.5.6.1	Lands zoned C4-6 shall only be used for the following: (1) **Office** (2) **Medical Office - Restricted** (3) **Financial Institution**		
Regulations			
6.2.5.6.2	Maximum **gross floor area - non-residential**		1 560 m^2
6.2.5.6.3	Minimum **landscaped area**		40% of **lot area**
6.2.5.6.4	The **lot line** abutting St. Lawrence Drive shall be deemed to be the **front lot line**		
6.2.5.6.5	Minimum **front yard**		2.0 m
6.2.5.6.6	Minimum **exterior side yard**		9.0 m
6.2.5.6.7	Minimum **interior side yard**		3.0 m
6.2.5.6.8	Minimum **rear yard**		20.0 m
6.2.5.6.9	Maximum projection of awnings into the **exterior side yard**		2.0 m
6.2.5.6.10	Notwithstanding Article 6.1.1.1 of this By-law, retail sales accessory to a Commercial, Service or Office **use** contained in Table 6.2.1 of this By-law are permitted within the **yard** abutting Lakeshore Road East as a temporary use for the period of three years from the date of enactment and passing of this By-law (May 9, 2018)		

6.2.5.7	Exception: C4-7	Map # 17, 24	By-law:
In a C4-7 zone the permitted **uses** and applicable regulations shall be as specified for a C4 zone except that the following **uses**/regulations shall apply:			
Uses Not Permitted			
6.2.5.7.1	(1) **Restaurant** (2) **Take-out Restaurant**		

6.2.5.8	Exception: C4-8	Map # 15	By-law: OMB Order 2015 January 22, 0130-2017, 0174-2017, 0181-2018/LPAT Order 2019 February 15, 0199-2024
In a C4-8 zone the permitted **uses** and applicable regulations shall be as specified for a C4 zone except that the following **uses**/regulations shall apply:			
Use Not Permitted			
6.2.5.8.1	(1) **Apartment**		
Regulations			
6.2.5.8.2	The provisions of Line 12.0 contained in Table 6.2.1 of this By-law shall not apply		
6.2.5.8.3	Maximum **exterior side yard**		6.0 m
6.2.5.8.4	Maximum number of **dwelling units**		20
6.2.5.8.5	Maximum **gross floor area - non-residential**		1 500 m^2
6.2.5.8.6	Maximum length of a **building streetwall** on the **first storey** that may be used for accessing residential **uses** above the **first storey**		33%
6.2.5.8.7	Required **loading spaces** may be located on lands zoned RM6-15		
6.2.5.8.8	**Driveways**, **aisles** and **CEC - roads** may be shared with abutting lands zoned RM6-15		
6.2.5.8.9	All site development plans shall comply with Schedule C4-8 of this Exception		



Schedule C4-8
Map 15

6.2.5.9	Exception: C4-9	Map # 14, 15, 21	By-law: 0308-2011, 0174-2017, 0111-2019/ LPAT Order 2021 March 09

In a C4-9 zone the permitted **uses** and applicable regulations shall be as specified for a C4 zone except that the following **uses**/regulations shall apply:

Additional Permitted Use		
6.2.5.9.1	(1) *deleted*	
Regulations		
6.2.5.9.2	Maximum **floor space index - non-residential**	1.0
6.2.5.9.3	Maximum percentage of total **gross floor area** used for **apartment**, **overnight accommodation**, **recreational establishment**, **community centre** and **office** or any combination thereof	80%
6.2.5.9.4	**Height**:	
	(1) minimum **height -** highest ridge: **sloped roof**	16.0 m and 3 **storeys** or
	(2) minimum **height** top: **flat roof**	12.5 m and 3 **storeys**
6.2.5.9.5	Maximum **height** of a **building**, or portions thereof, located within 10.0 m of Dundas Street East and West or Hurontario Street	6 **storeys**
6.2.5.9.6	Maximum **height** of a **building**, or portion thereof, with a minimum setback of 10.0 m from any **lot line**	18 **storeys**
6.2.5.9.7	**Apartments** shall comply with the RA4 regulations contained in Subsection 4.15.1 of this By-law except that:	
	(1) maximum **floor space index - apartment zone**	2.9
	(2) minimum **floor space index - apartment zone**	1.0
	(3) minimum **height**	3 **storeys**

6.2.5.10	Exception: C4-10	Map # 07, 21	By-law:

In a C4-10 zone the permitted **uses** and applicable regulations shall be as specified for a C4 zone except that the following **uses**/regulations shall apply:

Additional Permitted Uses	
6.2.5.10.1	(1) **Motor vehicle service station** legally **existing** on the date of passing of this By-law
	(2) **Motor vehicle repair facility - restricted** legally **existing** on the date of passing of this By-law

6.2.5.11	Exception: C4-11	Map # 10	By-law: 0194-2014/ OMB Order 2016 March 11, 0181-2018/LPAT Order 2019 February 15, 0111-2019/LPAT Order 2021 March 09

In a C4-11 zone the permitted **uses** and applicable regulations shall be as specified for a C4 zone except that the following **uses**/regulations shall apply:

Additional Permitted Uses

6.2.5.11.1
(1) **Back to Back** and **Stacked Townhouses**
(2) **Motor vehicle service station** and **motor vehicle wash facility - restricted** legally **existing** on the date of passing of this By-law

Uses Not Permitted

6.2.5.11.2
(1) **Retail store** greater than 600 m² **gross floor area - non-residential**
(2) **Parking Lot**

Regulations

6.2.5.11.3	Maximum floor space index - residential	2.0
6.2.5.11.4	Minimum **front yard**	0.6 m
6.2.5.11.5	Minimum **exterior side yard**	0.6 m
6.2.5.11.6	Minimum **interior side yard** abutting lands zoned Residential or Greenlands	7.5 m plus 1.0 m for each additional 1.0 m of **building height** or portion thereof, exceeding 10.0 m
6.2.5.11.7	Minimum **rear yard** abutting lands zoned Residential or Greenlands	7.5 m plus 1.0 m for each additional 1.0 m of **building height** or portion thereof, exceeding 10.0 m
6.2.5.11.8	A minimum of 75% of the **first storey** of any **building** or **structure** shall contain commercial **uses** where it has a **streetwall** facing Lakeshore Road West	
6.2.5.11.9	Maximum **height**	4 **storeys**
6.2.5.11.10	Minimum first storey height measured from the finished floor of the first storey to the underside of the finished ceiling	4.5 m
6.2.5.11.11	Minimum setback from the front exterior face of the third **storey** to the front exterior face of the fourth **storey** of a **building** or **structure**	6.0 m
6.2.5.11.12	Minimum length of a **streetwall** along Lakeshore Road West where there is **driveway** access to a **street**	70% of **lot frontage**
6.2.5.11.13	Minimum length of a **streetwall** along Lakeshore Road West where there is no **driveway** access to a **street** or the **driveway** access to a **street** is shared with an abutting property	90% **of lot frontage**
6.2.5.11.14	Non-residential **uses** located on the **first storey** shall have the **main front entrance** facing Lakeshore Road West	
6.2.5.11.15	Minimum percentage of glazing of the **first storey** of a **streetwall**	60%
6.2.5.11.16	Minimum number of **parking spaces** per 100 m^2 **gross floor area - non-residential** for a **retail store**, **animal care establishment**, **service establishment**, **repair establishment** or **office**, provided that the **gross floor area - non-residential** is less than or equal to 300 m^2	3.0

Exception C4-11 continued on next page

6.2.5.11	Exception: C4-11	Map # 10	By-law: 0194-2014/ OMB Order 2016 March 11, 0181-2018/LPAT Order 2019 February 15, 0111-2019/LPAT Order 2021 March 09
Exception C4-11 continued from previous page			
6.2.5.11.17	Where the floor space index - residential is greater than 1.0, required parking shall be provided within a **parking structure** located either above or below grade		
6.2.5.11.18	Maximum **height** of an above grade **parking structure**		2 **storeys**
6.2.5.11.19	Above grade **parking structures** adjacent to a **street** shall have residential and/or non-residential **uses** with a minimum depth of 10.0 m along a **streetwall** of both the first and second **storey**		
6.2.5.11.20	"Floor Space Index - Residential" means the ratio of the **gross floor area** of all **buildings** and **structures**, exclusive of **gross floor area - non-residential**, to the **lot area**		

6.2.5.12	Exception: C4-12	Map # 01, 06, 07, 09, 38W, 48E	By-law:
In a C4-12 zone the permitted **uses** and applicable regulations shall be as specified for a C4 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Use			
6.2.5.12.1	(1)	**Motor vehicle repair facility - restricted** legally **existing** on the date of passing of this By-law	

6.2.5.13	Exception: C4-13	Map # 06, 08	By-law: 0007-2020
In a C4-13 zone the permitted **uses** and applicable regulations shall be as specified for a C4 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Use			
6.2.5.13.1	(1)	**Motor vehicle sales, leasing and/or rental facility - restricted** legally **existing** on the date of passing of this By-law	

6.2.5.14	Exception: C4-14	Map # 07	By-law: 0086-2018
In a C4-14 zone the permitted **uses** and applicable regulations shall be as specified for a C4 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Use			
6.2.5.14.1	(1)	**Convenience restaurant** legally **existing** on the date of passing of this By-law	
Regulation			
6.2.5.14.2	Notwithstanding Article 6.1.1.1 of this By-law, retail sales accessory to a Commercial, Service or Office **use** contained in Table 6.2.1 of this By-law, and outdoor patios accessory to a **restaurant** and **take-out restaurant**, are permitted within the **yard** abutting Lakeshore Road East as a temporary use for the period of three years from the date of enactment and passing of this By-law (May 9, 2018)		

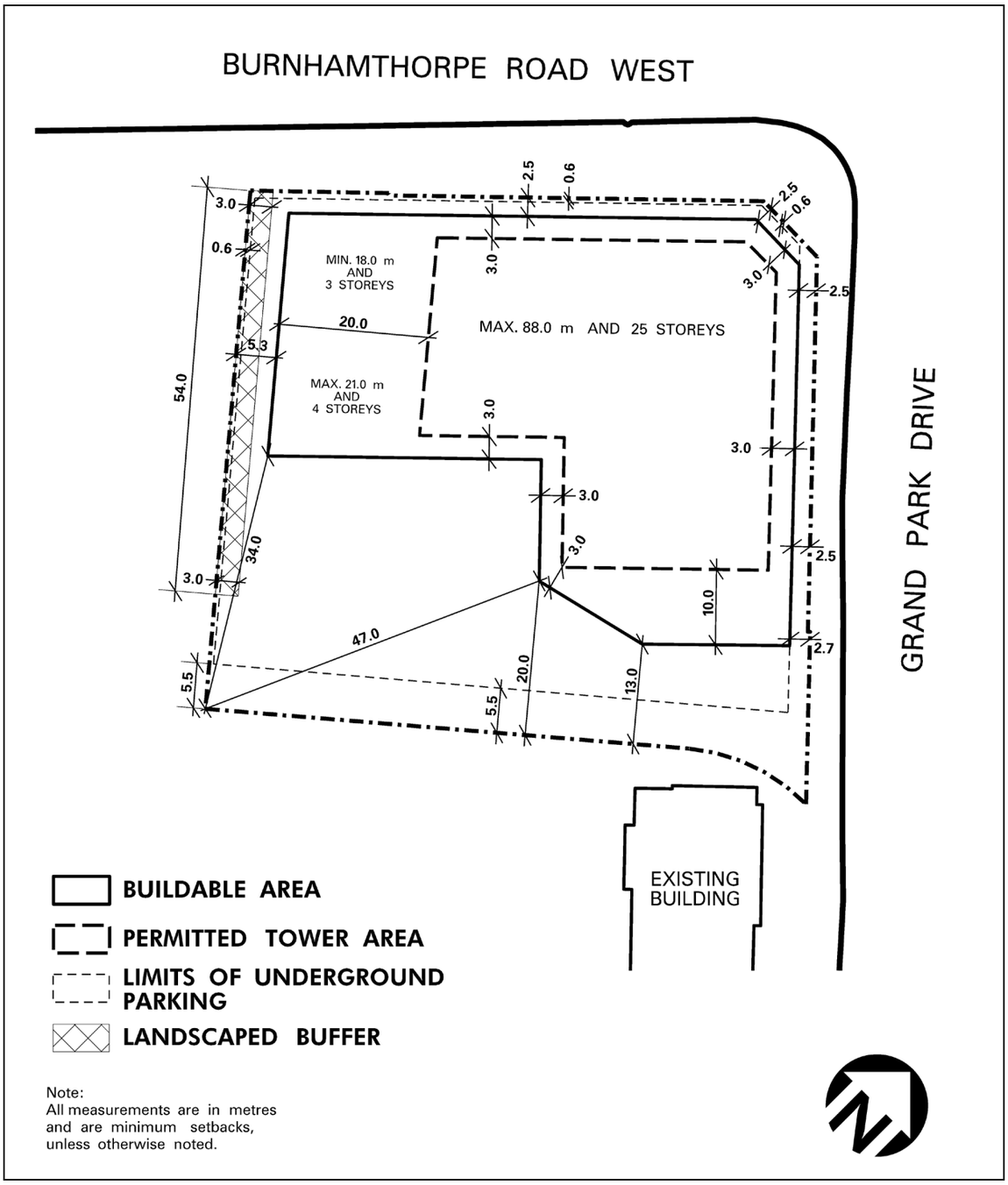
6.2.5.15	Exception: C4-15	Map # 22	By-law: 0308-2011, 0174-2017
In a C4-15 zone the permitted **uses** and applicable regulations shall be as specified for a C4 zone except that the following **uses**/regulations shall apply:			
Regulations			
6.2.5.15.1	Maximum **gross floor area - non-residential**		5 850 m^2
6.2.5.15.2	Minimum northerly **yard** - non-residential **building**		2.0 m
6.2.5.15.3	Minimum southerly **yard** - non-residential **building**		3.5 m
6.2.5.15.4	Minimum easterly **yard** - non-residential **building**		3.0 m
6.2.5.15.5	Minimum setback to a **sight triangle**		2.0 m
6.2.5.15.6	Maximum **height -** highest ridge: **sloped roof -** non-residential **building**		16.0 m and 3 **storeys**
6.2.5.15.7	Maximum **height -** top: **flat roof** - non-residential **building**		12.5 m and 3 **storeys**
6.2.5.15.8	Maximum projection of a covered walkway into a required **yard**		2.0 m
6.2.5.15.9	**Apartments** shall comply with the RA2 regulations contained in Subsection 4.15.1 of this By-law except that:		
	(1)	maximum **gross floor area - apartment zone**	2.2 times the **lot area**
	(2)	minimum **gross floor area - apartment zone**	1.0 times the **lot area**
	(3)	minimum **landscaped area**	30% of the **lot area**
	(4)	minimum northerly **yard** - **apartment**	3.0 m
	(5)	minimum westerly **yard** - **apartment**	4.5 m
	(6)	maximum **height** - **apartment**	8 **storeys**
	(7)	minimum northerly setback to a **parking area** at **established grade**	2.75 m
	(8)	minimum side setback to a **parking area** at **established grade**	1.0 m
	(9)	minimum setback to a **parking structure** completely below finished grade	0.0 m

6.2.5.16	Exception: C4-16	Map # 07	By-law: 0126-2015, 0086-2018
In a C4-16 zone the permitted **uses** and applicable regulations shall be as specified for a C4 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Use			
6.2.5.16.1	(1)	**Motor vehicle wash facility - restricted** legally **existing** on the date of passing of this By-law	
Regulations			
6.2.5.16.2	A **motor vehicle wash facility - restricted** shall also include a coin-operated motor vehicle wash facility - restricted		
6.2.5.16.3	Notwithstanding Article 6.1.1.1 of this By-law, retail sales accessory to a Commercial, Service or Office **use** contained in Table 6.2.1 of this By-law, and outdoor patios accessory to a **restaurant** and **take-out restaurant**, are permitted within the **yard** abutting Lakeshore Road East as a temporary use for the period of three years from the date of enactment and passing of this By-law (May 9, 2018)		

6.2.5.17	Exception: C4-17	Map # 22	By-law: *deleted by 0281-2015*, OLT Order 2022 July 12, 0217-2023
In a C4-17 zone the permitted **uses** and applicable regulations shall be as specified for a C4 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Use			
6.2.5.17.1	(1) **Motor Vehicle Sales**, **Leasing and/or Rental Facility - Restricted** (2) *deleted*		
Regulations			
6.2.5.17.2	*deleted*		
6.2.5.17.3	Maximum **floor space index - apartment zone**		4.0
6.2.5.17.4	Minimum **gross floor area - non-residential**		1 000 m^2
6.2.5.17.5	Maximum **tower floor plate**		800 m^2
6.2.5.17.6	The **lot line** abutting Burnhamthorpe Road West shall be deemed to be the **front lot line**		
6.2.5.17.7	Notwithstanding Sentence 6.2.5.17.15 of this Exception, maximum encroachment of a **balcony** into a required **front yard** or **exterior side yard**		1.5 m
6.2.5.17.8	Notwithstanding Sentence 6.2.5.17.15 of this Exception, stairs, landings, planters, canopies, ventilation shafts, and bicycle racks shall be permitted to encroach into a required **yard** and **landscaped buffer**		
6.2.5.17.9	Minimum number of resident **parking spaces** per condominium **dwelling unit**		1.0
6.2.5.17.10	Minimum number of visitor **parking spaces** per condominium **dwelling unit**		0.15
6.2.5.17.11	For the visitor component, a shared parking arrangement may be used for the calculation of required visitor/non-residential parking in accordance with the following: the greater of 0.15 visitor spaces per unit or Parking required for all non-residential **uses**, located in the same **building** or on the same **lot** as the residential **use**, except **entertainment establishment**, **overnight accommodation**, **place of religious assembly**, **recreational establishment** and **restaurant** Parking for **entertainment establishment**, **overnight accommodation**, **place of religious assembly**, **recreational establishment** and **restaurant** shall not be included in the above shared parking arrangement and shall be provided in accordance with applicable regulations contained in Table 3.1.2.2 of this By-law		
6.2.5.17.12	For the purposes of this By-law, **driveways**, **aisles**, and **parking spaces** are permitted to be shared with abutting lands zoned C3-5		
6.2.5.17.13	Minimum **amenity area**		4.0 m^2 per **dwelling unit**
6.2.5.17.14	Minimum **amenity area** to be provided outside		2.0 m^2 per **dwelling unit**

Exception C4-17 continued on next page

6.2.5.17	Exception: C4-17	Map # 22	By-law: *deleted by 0281-2015*, OLT Order 2022 July 12, 0217-2023
Exception C4-17 continued from previous page			
6.2.5.17.15	All site development plans shall comply with Schedule C4-17 of this Exception		
Holding Provision			
	The holding symbol H is to be removed from the whole or any part of the lands zoned H-C4-17 by further amendment to Map 22 of Schedule B contained in Part 13 of this By-law, as amended, upon satisfaction of the following requirements: (1) filing of a Record of Site Condition (RSC) on the Ministry of Environment and Climate Change Environmental Site Registry, and the provision of a complete copy of the RSC and all supporting reports to the City of Mississauga ("City"); (2) delivery of an executed Development and/or Servicing Agreement for the provision of maintenance and operation of shared facilities and services, warning clauses, conditions of site plan approval, construction within municipal boulevard/streetscape works, land dedications and easements, on-site stormwater management, servicing connections, cash-in-lieu of parkland, school board signs, and legal matters; (3) streetscaping along Burnhamthorpe Road West and Grand Park Drive including the relocation of utilities to accommodate a tree corridor on Grand Park Drive to the satisfaction of the City; (4) delivery of an executed agreement for the provision of certain facilities, services or matters, pursuant to section 37 of the *Planning Act*, as it read on the day before section 9 of Schedule 12 to the *More Homes, More Choices Act, 2019* came into force, in a form and on terms satisfactory to the City; (5) submission of any outstanding technical plans, studies and reports to the satisfaction of the City and the Region of Peel.		



Schedule C4-17
Map 22

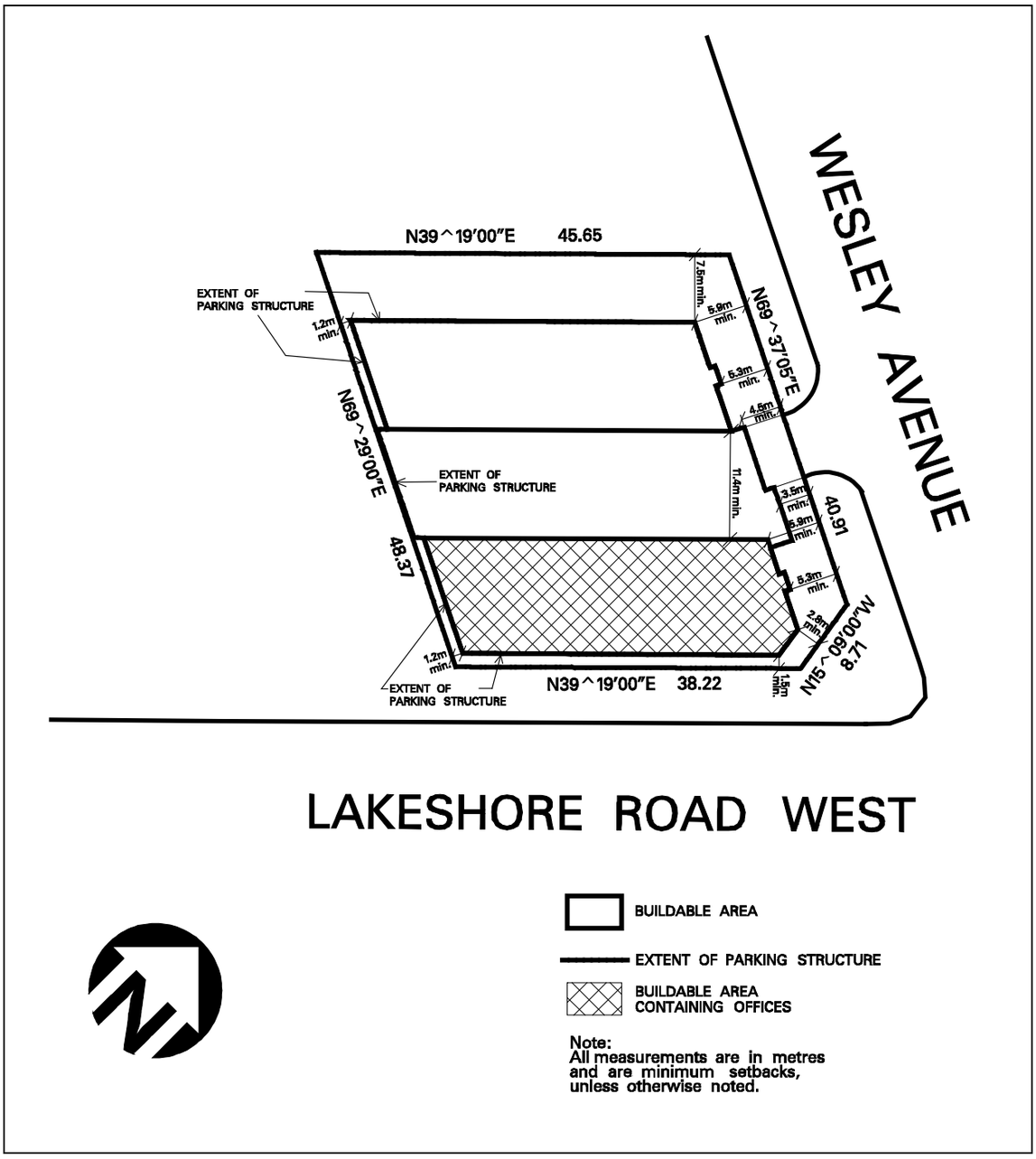
6.2.5.18	Exception: C4-18	Map # 08	By-law:
In a C4-18 zone the permitted **uses** and applicable regulations shall be as specified for C4 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Use			
6.2.5.18.1	(1)	Boat repair, sales, service and storage legally **existing** on the date of passing of this By-law	
Regulation			
6.2.5.18.2	Boat repair, sales, service and storage shall be permitted both inside and/or outside any **building** or **structure**		

6.2.5.19	Exception: C4-19	Map # 08	By-law: 0379-2009, 0174-2017
In a C4-19 zone the permitted **uses** and applicable regulations shall be as specified for a C4 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Use			
6.2.5.19.1	(1)	Apartment Hotel	
Regulations			
6.2.5.19.2	Maximum **height**		14 **storeys**
6.2.5.19.3	"Apartment Hotel" means a **building** used mainly for the purposes of catering to the public by supplying food and furnishing sleeping accommodation of not less than 20 **dwelling units**, suites of rooms, and/or individual bedrooms in which each **dwelling unit** or separate bedroom or suite shall have access to a common hall, each of which halls shall have two distinct and separate entrances from the outside		
6.2.5.19.4	Parking requirements for an apartment hotel shall comply with the Rental **Apartment** regulations contained in Table 3.1.2.1 of this By-law		

6.2.5.20	Exception: C4-20	Map # 07	By-law: 0174-2017, 0114-2025
In a C4-20 zone the permitted **uses** and applicable regulations shall be as specified for a C4 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Use			
6.2.5.20.1	(1)	**Detached Dwelling**	

6.2.5.21	Exception: C4-21	Map # 07	By-law: 0181-2018/LPAT Order 2019 February 15
In a C4-21 zone the permitted **uses** and applicable regulations shall be as specified for a C4 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Use			
6.2.5.21.1	(1) **Stacked Townhouse**		
Regulation			
6.2.5.21.2	Maximum number of **dwelling units** within a **stacked townhouse**		6

6.2.5.22	Exception: C4-22	Map # 08	By-law: 0181-2018/LPAT Order 2019 February 15, 0208-2022
In a C4-22 zone the applicable regulations shall be as specified for a C4 zone except that the following **uses**/regulations shall apply:			
Permitted Uses			
6.2.5.22.1	Lands zoned C4-22 shall only be used for the following: (1) **Townhouse** (2) **Office**		
Regulations			
6.2.5.22.2	Maximum number of townhouse **dwelling units**		12
6.2.5.22.3	Maximum number of **offices**		6
6.2.5.22.4	**Offices** shall only be located within the **first storey** of the **buildable area** fronting onto Lakeshore Road West identified on Schedule C4-22 of this Exception and the parking of **motor vehicles**		
6.2.5.22.5	Maximum **gross floor area - non-residential**		185 m^2
6.2.5.22.6	Maximum **gross floor area - residential**		1 980 m^2
6.2.5.22.7	For any townhouse **dwelling unit**, a maximum of one **office** shall be permitted		
6.2.5.22.8	Minimum **gross floor area - non-residential**		20 m^2
6.2.5.22.9	Maximum **height**		3 **storeys**, excluding a maximum 7.5 m^2 enclosed area providing access to roof top **deck**
6.2.5.22.10	Required **parking spaces** for a **townhouse**		24 spaces for residents, plus 3 spaces for visitors
6.2.5.22.11	Required **parking spaces** for **offices**		6
6.2.5.22.12	Notwithstanding Schedule C4-22 of this Exception, the maximum projections permitted beyond the **buildable area** shall be in compliance with the following:		
	(1) **porch**		1.5 m
	(2) awnings		0.6 m
	(3) window projection and other architectural elements, with or without a foundation, such as but not limited to fireplaces, pilasters and corbels		0.61 m
	(4) **balcony**		1.2 m
6.2.5.22.13	All site development plans shall comply with Schedule C4-22 of this Exception		

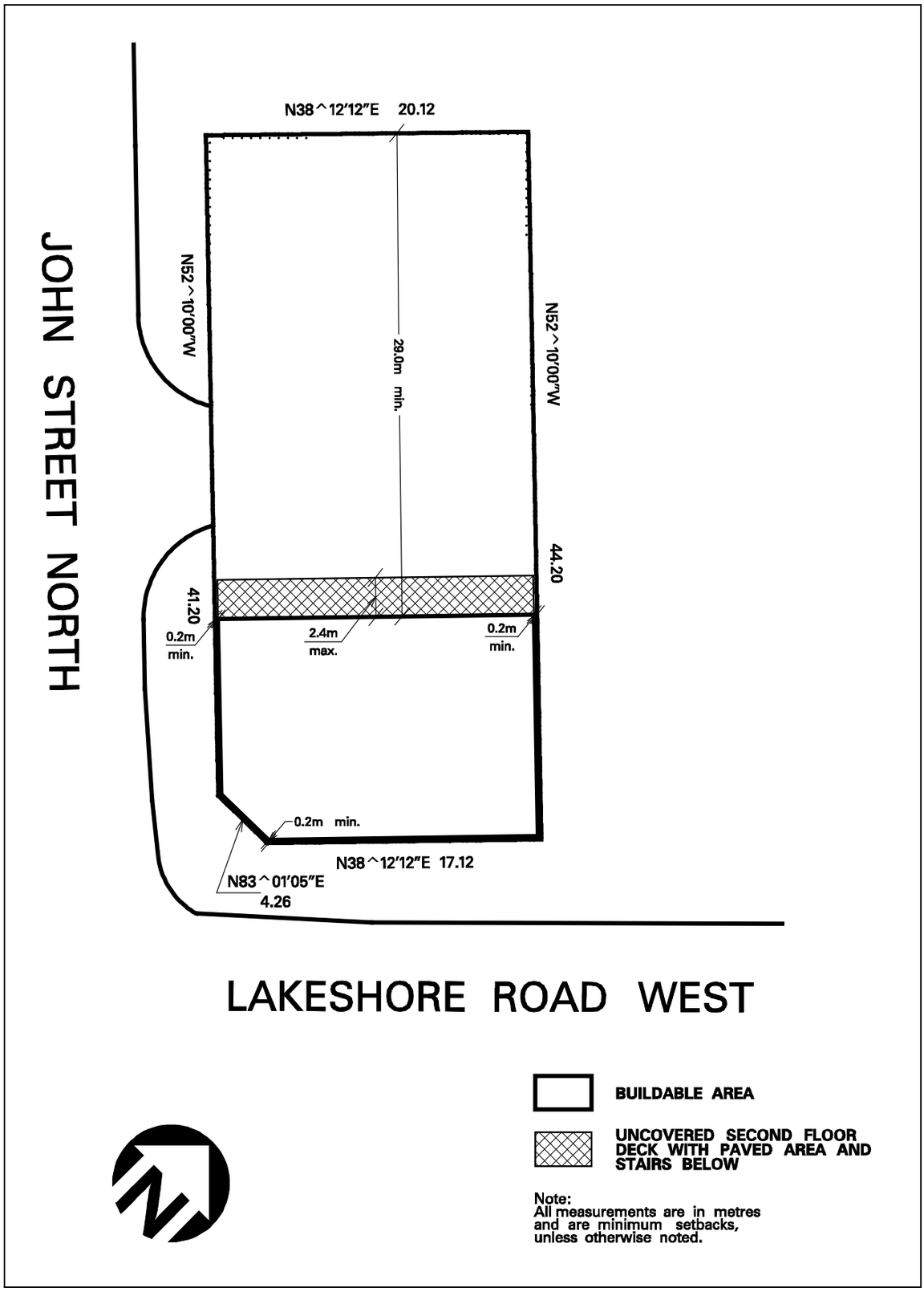


Schedule C4-22
Map 08

6.2.5.23	Exception: C4-23	Map # 08	By-law:
In a C4-23 zone the permitted **uses** and applicable regulations shall be as specified for a C4 zone except that the following **uses**/regulations shall apply:			
Regulations			
6.2.5.23.1	Maximum number of **dwelling units**		15
6.2.5.23.2	Maximum **height**		5 **storeys**

6.2.5.24	Exception: C4-24	Map # 08	By-law: 0111-2019/ LPAT Order 2021 March 09
In a C4-24 zone the permitted **uses** and applicable regulations shall be as specified for a C4 zone except that the following **uses**/regulations shall apply:			
Regulations			
6.2.5.24.1	Maximum number of **dwelling units**		19
6.2.5.24.2	Maximum **height**		4 **storeys**

6.2.5.25	Exception: C4-25	Map # 08	By-law: 0126-2015, 0086-2018, 0199-2024
In a C4-25 zone the permitted **uses** and applicable regulations shall be as specified for a C4 zone except that the following **uses**/regulations shall apply:			
Regulations			
6.2.5.25.1	Maximum number of apartment **dwelling units**		4
6.2.5.25.2	Maximum **lot coverage**		33%
6.2.5.25.3	Maximum **lot coverage** shall not include the uncovered second **storey deck**		
6.2.5.25.4	Maximum **gross floor area - non-residential**		255 m^2
6.2.5.25.5	Maximum **gross floor area - residential**		580 m^2
6.2.5.25.6	All non-residential **uses** shall only be located on the **first storey** of the **building**		
6.2.5.25.7	All **dwelling units** shall be located above the **first storey** of the **building** or **structure** and shall have an independent entrance on the second **storey**, accessed by a common open corridor which is shared by two apartment **dwelling units**		
6.2.5.25.8	Maximum **height** from **established grade** to the highest point of the **building**, including mechanical penthouse and equipment		13.0 m
6.2.5.25.9	Notwithstanding Article 6.1.1.1 of this By-law, retail sales accessory to a Commercial, Service or Office **use** contained in Table 6.2.1 of this By-law, and outdoor patios accessory to a **restaurant** and **take-out restaurant**, are permitted within the **yard** abutting Lakeshore Road West as a temporary use for the period of three years from the date of enactment and passing of this By-law (May 9, 2018)		
6.2.5.25.10	All site development plans shall comply with Schedule C4-25 of this Exception		



Schedule C4-25
Map 08

6.2.5.26	Exception: C4-26	Map # 08	By-law:
In a C4-26 zone the permitted **uses** and applicable regulations shall be as specified for a C4 zone except that the following **uses**/regulations shall apply:			
Regulations			
6.2.5.26.1	Maximum number of **dwelling units**		32
6.2.5.26.2	Maximum **height**		5 **storeys**

6.2.5.27	Exception: C4-27	Map # 08	By-law: 0174-2017, 0199-2024
In a C4-27 zone the permitted **uses** and applicable regulations shall be as specified for a C4 zone except that the following **uses**/regulations shall apply:			
Regulations			
6.2.5.27.1	Maximum **gross floor area - non-residential**		837 m^2
6.2.5.27.2	Maximum **floor space index - apartment zone**		2.53
6.2.5.27.3	Maximum **height**		20 **storeys**
6.2.5.27.4	*deleted*		

6.2.5.28	Exception: C4-28	Map # 38W	By-law:
In a C4-28 zone the permitted **uses** and applicable regulations shall be as specified for a C4 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Use			
6.2.5.28.1	(1)	The **existing adult video store** located at 141 Queen Street South	

6.2.5.29	Exception: C4-29	Map # 06	By-law: 0325-2008, 0379-2009, 0174-2017

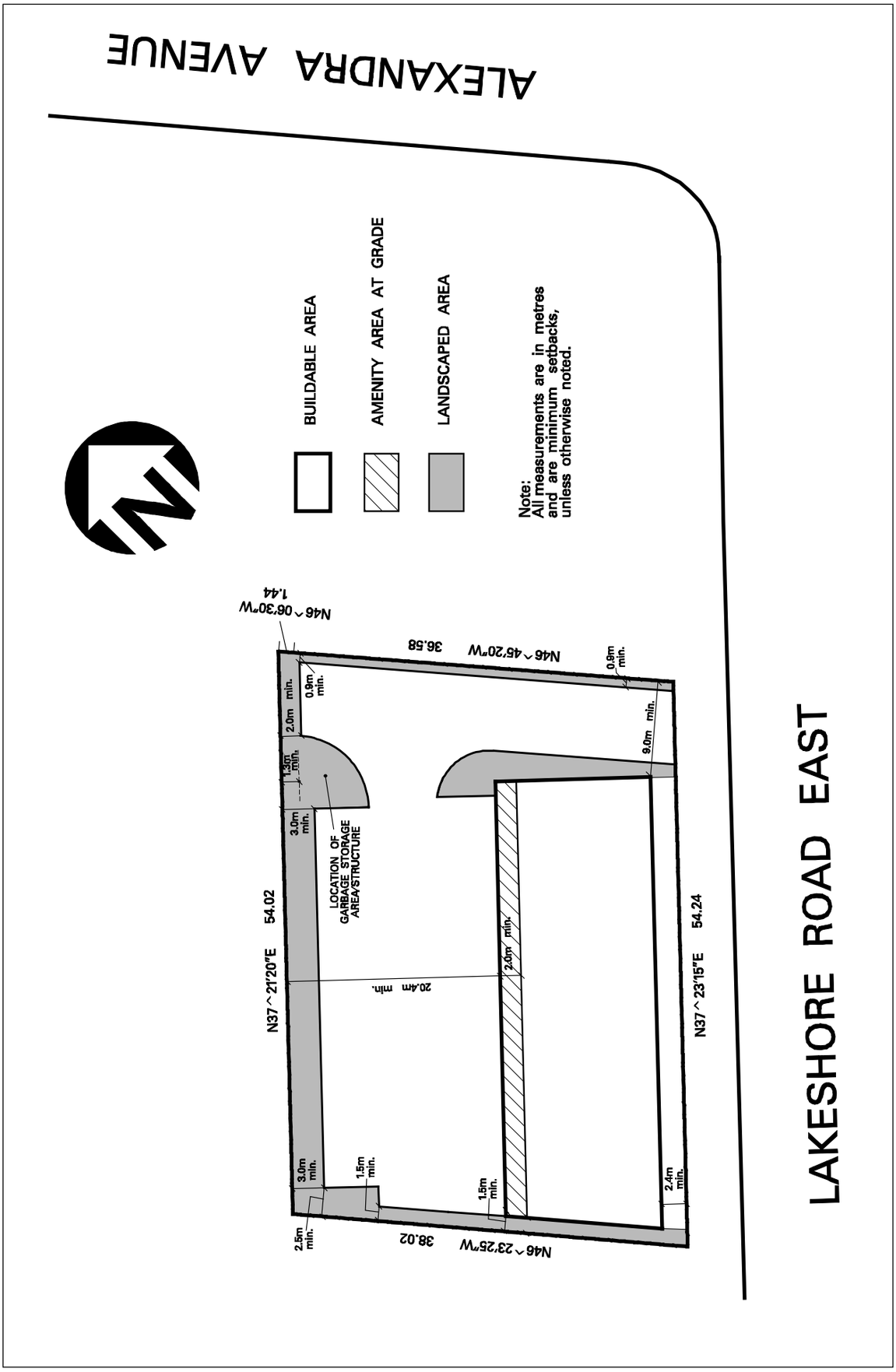
In a C4-29 zone the permitted **uses** and applicable regulations shall be as specified for a C4 zone except that the following **uses**/regulations shall apply:

Additional Permitted Uses

6.2.5.29.1
(1) Sky-light Apartment Dwelling
(2) Live/Work Unit
(3) **Office** accessory to a live/work unit
(4) Personal service establishment accessory to a live/work unit

Regulations

6.2.5.29.2	Maximum number of sky-light apartment **dwelling units**	6
6.2.5.29.3	Maximum number of live/work units	6
6.2.5.29.4	Maximum gross floor area of all **buildings** and **structures**	1 616 m^2
6.2.5.29.5	Maximum **gross floor area - non-residential** for each **office** or personal service establishment use	26 m^2
6.2.5.29.6	Sky-light apartment dwellings shall only be located above the **first storey**	
6.2.5.29.7	Live/work units shall only be located within the **first storey**	
6.2.5.29.8	Live/work units shall only be established in conjunction with an **office** or personal service establishment use	
6.2.5.29.9	Live/work units must contain one **office** or one personal service establishment	
6.2.5.29.10	Maximum **height**	12.0 m
6.2.5.29.11	Encroachment of a covered **porch** into required **front yard**	1.8 m
6.2.5.29.12	"Sky-light Apartment Dwelling" means a **building** or **structure** where each **dwelling unit** has an independent entrance at the ground level only or through a common entrance at the ground level or at the **first storey** above **established grade**	
6.2.5.29.13	"Live/Work Unit" means a **dwelling unit** used partly for residential purposes and partly for **offices** or personal service establishments	
6.2.5.29.14	Personal Service Establishment accessory to a live/work unit shall also include a service or repair shop for personal or consumer goods excluding **motor vehicles** but shall not include a laundromat, laundry depot and/or dry cleaning establishment	
6.2.5.29.15	"Amenity Area at Grade" means an at grade outdoor area consisting of landscaping or other surface treatment used for recreation or other leisure activities but shall not include a **parking space** or **driveway**	
6.2.5.29.16	"Gross Floor Area" means the aggregate of each **storey** above **established grade**, excluding any part of the **building** or **structure** used for **motor vehicle** parking, as measured from the exteriors of outside walls	
6.2.5.29.17	Parking requirements for all residential **uses** shall comply with the condominium **apartment** regulations contained in Table 3.1.2.1 of this By-law	
6.2.5.29.18	All site development plans shall comply with Schedule C4-29 of this Exception	



Schedule C4-29
Map 06

6.2.5.30	Exception: C4-30	Map # 07	By-law: 0126-2015, 0086-2018
In a C4-30 zone the permitted **uses** and applicable regulations shall be as specified for a C4 zone except that the following **uses**/regulations shall apply:			
Regulations			
6.2.5.30.1	Maximum number of **dwelling units**		30
6.2.5.30.2	Maximum **height**		5 **storeys**
6.2.5.30.3	Notwithstanding Article 6.1.1.1 of this By-law, retail sales accessory to a Commercial, Service or Office **use** contained in Table 6.2.1 of this By-law, and outdoor patios accessory to a **restaurant** and **take-out restaurant**, are permitted within the **yard** abutting Lakeshore Road East as a temporary use for the period of three years from the date of enactment and passing of this By-law (May 9, 2018)		

6.2.5.31	Exception: C4-31	Map #	By-law: *deleted by 0111-2019/LPAT Order 2021 March 09*

6.2.5.32	Exception: C4-32	Map # 39E	By-law: 0174-2017
In a C4-32 zone the permitted **uses** and applicable regulations shall be as specified for a C4 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Use			
6.2.5.32.1	(1) **Retirement Building**		

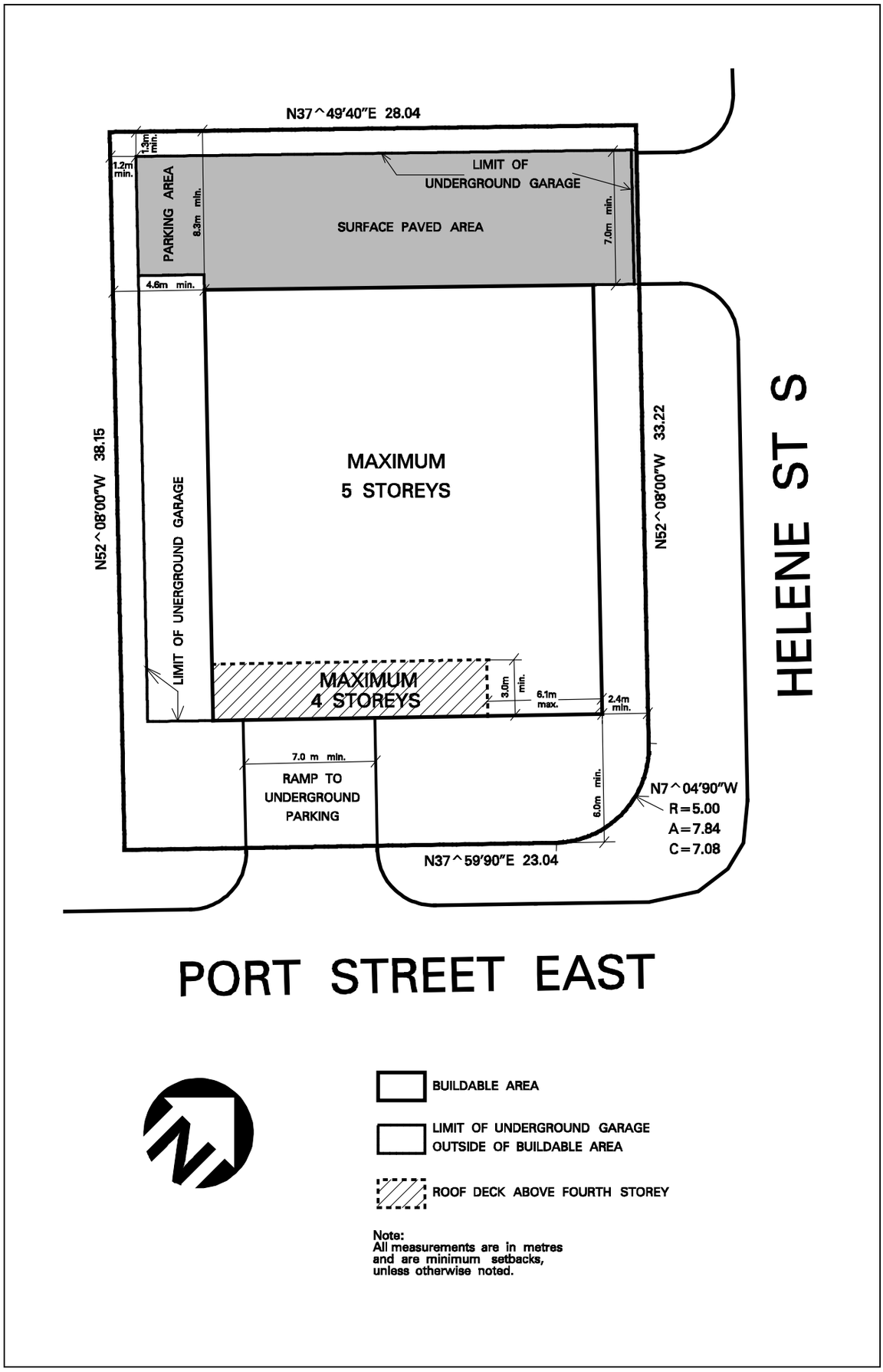
6.2.5.33	Exception: C4-33	Map # 07	By-law: 0126-2015, 0086-2018
In a C4-33 zone the permitted **uses** and applicable regulations shall be as specified for a C4 zone except that the following **uses**/regulations shall apply:			
Regulations			
6.2.5.33.1	Maximum number of **dwelling units**		26
6.2.5.33.2	Maximum **height**		4 **storeys**
6.2.5.33.3	Notwithstanding Article 6.1.1.1 of this By-law, retail sales accessory to a Commercial, Service or Office **use** contained in Table 6.2.1 of this By-law, and outdoor patios accessory to a **restaurant** and **take-out restaurant**, are permitted within the **yard** abutting Lakeshore Road East as a temporary use for the period of three years from the date of enactment and passing of this By-law (May 9, 2018)		

6.2.5.34	Exception: C4-34	Map # 17	By-law:
In a C4-34 zone the applicable regulations shall be as specified for a C4 zone except that the following **uses**/regulations shall apply:			
Permitted Uses			
6.2.5.34.1	Lands zoned C4-34 shall only be used for the following: (1) **Office** (2) **Medical Office** (3) **Dwelling unit** located above the **first storey** (4) Community Hall (5) **Place of Religious Assembly** (6) **Public** or **Private School**		

6.2.5.35	Exception: C4-35	Map # 08	By-law: 0126-2015, 0086-2018
In a C4-35 zone the permitted **uses** and applicable regulations shall be as specified for a C4 zone except that the following **uses**/regulations shall apply:			
Regulations			
6.2.5.35.1	Maximum **height**		2 **storeys**
6.2.5.35.2	Notwithstanding Article 6.1.1.1 of this By-law, retail sales accessory to a Commercial, Service or Office **use** contained in Table 6.2.1 of this By-law, and outdoor patios accessory to a **restaurant** and **take-out restaurant**, are permitted within the **yard** abutting Lakeshore Road West as a temporary use for the period of three years from the date of enactment and passing of this By-law (May 9, 2018)		

6.2.5.36	Exception: C4-36	Map # 21	By-law: 0308-2011, 0174-2017
In a C4-36 zone the permitted **uses** and applicable regulations shall be as specified for a C4 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Use			
6.2.5.36.1	(1) The **existing adult video store** located at 41A Dundas Street East		
Regulations			
6.2.5.36.2	Maximum **floor space index - non-residential**		1.0
6.2.5.36.3	Maximum percentage of total **gross floor area - apartment zone**, **overnight accommodation**, **recreational establishment**, **community centre** and **office** or any combination thereof		80%
6.2.5.36.4	Minimum **height -** highest ridge: **sloped roof**		16.0 m and 3 **storeys**
6.2.5.36.5	Minimum **height** top: **flat roof**		12.5 m and 3 **storeys**
6.2.5.36.6	Maximum **height** of a **building**, or portion thereof, with a minimum setback of 10.0 m from any **lot line**		18 **storeys**
6.2.5.36.7	**Apartments** shall comply with the RA4 regulations contained in Subsection 4.15.1 of this By-law except that:		
	(1) maximum **floor space index - apartment zone**		2.9
	(2) minimum **floor space index - apartment zone**		1.0
	(3) minimum **height**		3 **storeys**

6.2.5.37	Exception: C4-37	Map # 08	By-law: 0308-2011
In a C4-37 zone the permitted **uses** and applicable regulations shall be as specified for a C4 zone except that the following **uses**/regulations shall apply:			
Regulations			
6.2.5.37.1	Commercial **uses** contained in Subsection 6.2.1 of this By-law shall only be located within the **first storey**		
6.2.5.37.2	Maximum number of **dwelling units**		12
6.2.5.37.3	Maximum combined **gross floor area - residential** and **gross floor area - non-residential**		1.8 times **lot area**
6.2.5.37.4	Minimum **landscaped area**		25% of the **lot area**
6.2.5.37.5	Maximum **height**		18.0 m and 5 **storeys**
6.2.5.37.6	Maximum projection of an awning, covered or uncovered **balcony** into a required **front yard** or **exterior side yard**		1.8 m
6.2.5.37.7	An underground **parking structure** shall be located wholly below the ground level measured at the centreline of Port Street East		
6.2.5.37.8	All site development plans shall comply with Schedule C4-37 of this Exception		
6.2.5.37.9	The fifth **storey** must be set back from the fourth **storey** as identified on Schedule C4-37 of this Exception		



Schedule C4-37
Map 08

6.2.5.38	Exception: C4-38	Map # 38W, 39E	By-law: 0325-2008, 0040-2024
In a C4-38 zone the permitted **uses** and applicable regulations shall be as specified for a C4 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Use			
6.2.5.38.1	(1)	**Detached dwelling** legally **existing** on the date of passing of this By-law	
Regulations			
6.2.5.38.2	Minimum **front yard**		4.5 m
6.2.5.38.3	Maximum **front yard**		6.0 m
6.2.5.38.4	Maximum **height**		2 **storeys**

6.2.5.39	Exception: C4-39	Map # 38W, 39E	By-law:
In a C4-39 zone the permitted **uses** and applicable regulations shall be as specified for a C4 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Use			
6.2.5.39.1	(1)	**Detached dwelling** legally **existing** on the date of passing of this By-law	
Regulation			
6.2.5.39.2	Maximum **height**		3 **storeys**

6.2.5.40	Exception: C4-40	Map # 39E	By-law:
In a C4-40 zone the permitted **uses** and applicable regulations shall be as specified for a C4 zone except that the following **uses**/regulations shall apply:			
Regulations			
6.2.5.40.1	Maximum number of **dwelling units**		42
6.2.5.40.2	Maximum **height**		5 **storeys**

6.2.5.41	Exception: C4-41	Map # 39E	By-law:
In a C4-41 zone the permitted **uses** and applicable regulations shall be as specified for a C4 zone except that the following **uses**/regulations shall apply:			
Regulations			
6.2.5.41.1	Maximum number of **dwelling units**		40
6.2.5.41.2	Maximum **height**		5 **storeys**

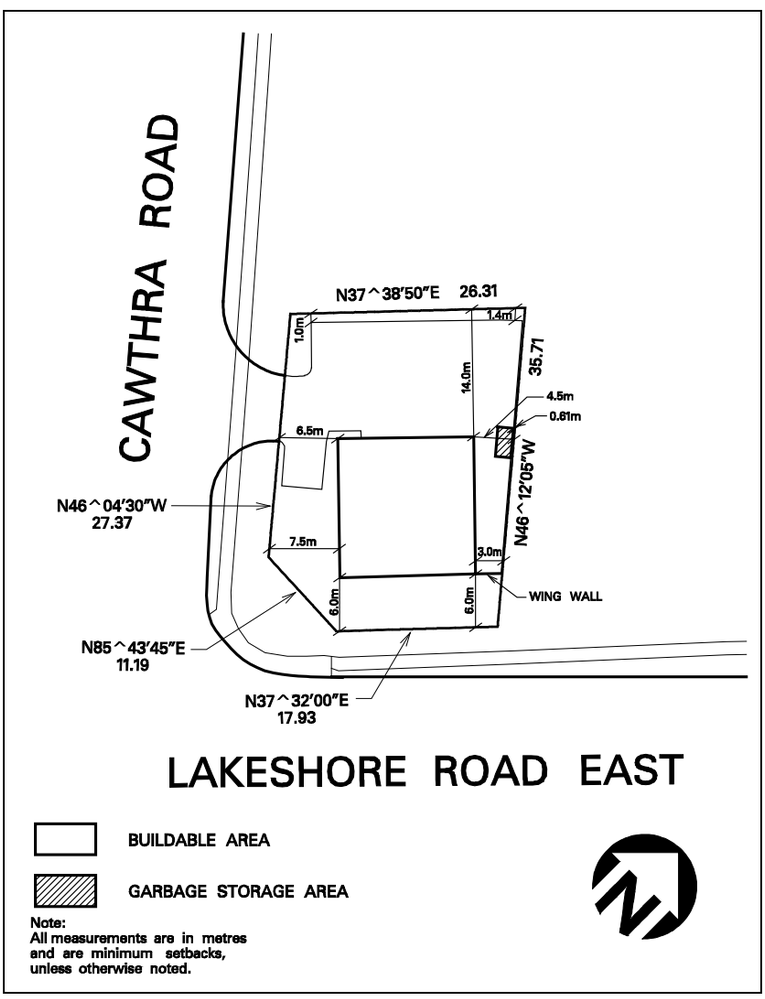
6.2.5.42	Exception: C4-42	Map # 08	By-law:
In a C4-42 zone the permitted **uses** and applicable regulations shall be as specified for a C4 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Use			
6.2.5.42.1	(1)	One (1) **detached dwelling** per **lot**	
Uses Not Permitted			
6.2.5.42.2	(1) (2)	**Retail Store** **Overnight Accommodation**	
Regulations			
6.2.5.42.3	Minimum **lot area**		495 m^2
6.2.5.42.4	Minimum **lot frontage**		12.0 m
6.2.5.42.5	Minimum **landscaped area**		25% of the **lot area**
6.2.5.42.6	Minimum **front yard**		4.5 m
6.2.5.42.7	Minimum **interior** and **exterior side yards**		1.2 m on one side of the **lot** and 2.0 m on the other side
6.2.5.42.8	Minimum **rear yard**		7.5 m
6.2.5.42.9	Maximum **height**		9.7 m
6.2.5.42.10	Minimum required **parking space** per **dwelling unit**		1.0
6.2.5.42.11	Maximum **driveway** width		lesser of 6.0 m or 50% of the **lot frontage**
6.2.5.42.12	**Height** of all **buildings** and **structures** shall be measured from **established grade**		

6.2.5.43	Exception: C4-43	Map # 07	By-law: 0126-2015, 0086-2018
In a C4-43 zone the permitted **uses** and applicable regulations shall be as specified for a C4 zone except that the following **uses**/regulations shall apply:			
Regulations			
6.2.5.43.1	Maximum **floor space index**		1.5
6.2.5.43.2	Maximum **height**		6 **storeys**
6.2.5.43.3	Minimum required **parking space** per apartment **dwelling unit**		1.0
6.2.5.43.4	Notwithstanding Article 6.1.1.1 of this By-law, retail sales accessory to a Commercial, Service or Office **use** contained in Table 6.2.1 of this By-law, and outdoor patios accessory to a **restaurant** and **take-out restaurant**, are permitted within the **yard** abutting Lakeshore Road East as a temporary use for the period of three years from the date of enactment and passing of this By-law (May 9, 2018)		

6.2.5.44	Exception: C4-44	Map # 08	By-law:
In a C4-44 zone the permitted **uses** and applicable regulations shall be as specified for a C4 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Use			
6.2.5.44.1	(1)	**Motor vehicle sales, leasing and/or rental facility - restricted** legally **existing** on the date of passing of this By-law	

6.2.5.45	Exception: C4-45	Map # 10	By-law: 0227-2014, 0119-2016
In a C4-45 zone the permitted **uses** and applicable regulations shall be as specified for a C4 zone except that the following **uses**/regulations shall apply:			
Regulations			
6.2.5.45.1	Minimum depth of a **landscaped buffer** measured from a Residential Zone		0.0 m
6.2.5.45.2	**Driveways, parking areas** and **aisles** may be shared with abutting lands zoned RA2-46		
6.2.5.45.3	Minimum number of shared visitor/commercial **parking spaces** with lands zoned RA2-46		94

6.2.5.46	Exception: C4-46	Map # 06	By-law: 0212-2015, 0199-2024
In a C4-46 zone the permitted **uses** and applicable regulations shall be as specified for a C4 zone except that the following **uses**/regulations shall apply:			
Regulations			
6.2.5.46.1	Maximum area used for a **restaurant** seating area		52 m^2
6.2.5.46.2	Maximum number of seats		20
6.2.5.46.3	All site development plans shall comply with Schedule C4-46 of this Exception		



Schedule C4-46
Map 06

6.2.5.47	Exception: C4-47	Map # 49E	By-law: 0379-2009, 0120-2025

In a C4-47 zone the permitted **uses** and applicable regulations shall be as specified for a C4 zone except that the following **uses**/regulations shall apply:

Regulations		
6.2.5.47.1	Maximum **gross floor area - non-residential**	905 m^2
6.2.5.47.2	Minimum depth of a **landscaped buffer** abutting the **rear lot line**	1.8 m
6.2.5.47.3	The **lot line** abutting Airport Road shall be deemed to be the **front lot line**	
6.2.5.47.4	Minimum **front yard**	3.2 m
6.2.5.47.5	Minimum **interior side yard**	3.0 m
6.2.5.47.6	Maximum **height**	1 **storey**
6.2.5.47.7	Parking for commercial **uses** shall be calculated at the rate for **retail centre** contained in Part 3 of this By-law	

6.2.5.48	Exception: C4-48	Map # 08	By-law: 0308-2011, 0181-2018/LPAT Order 2019 February 15, 0048-2025

In a C4-48 zone the permitted **uses** and applicable regulations shall be as specified for a C4 zone except that the following **uses**/regulations shall apply:

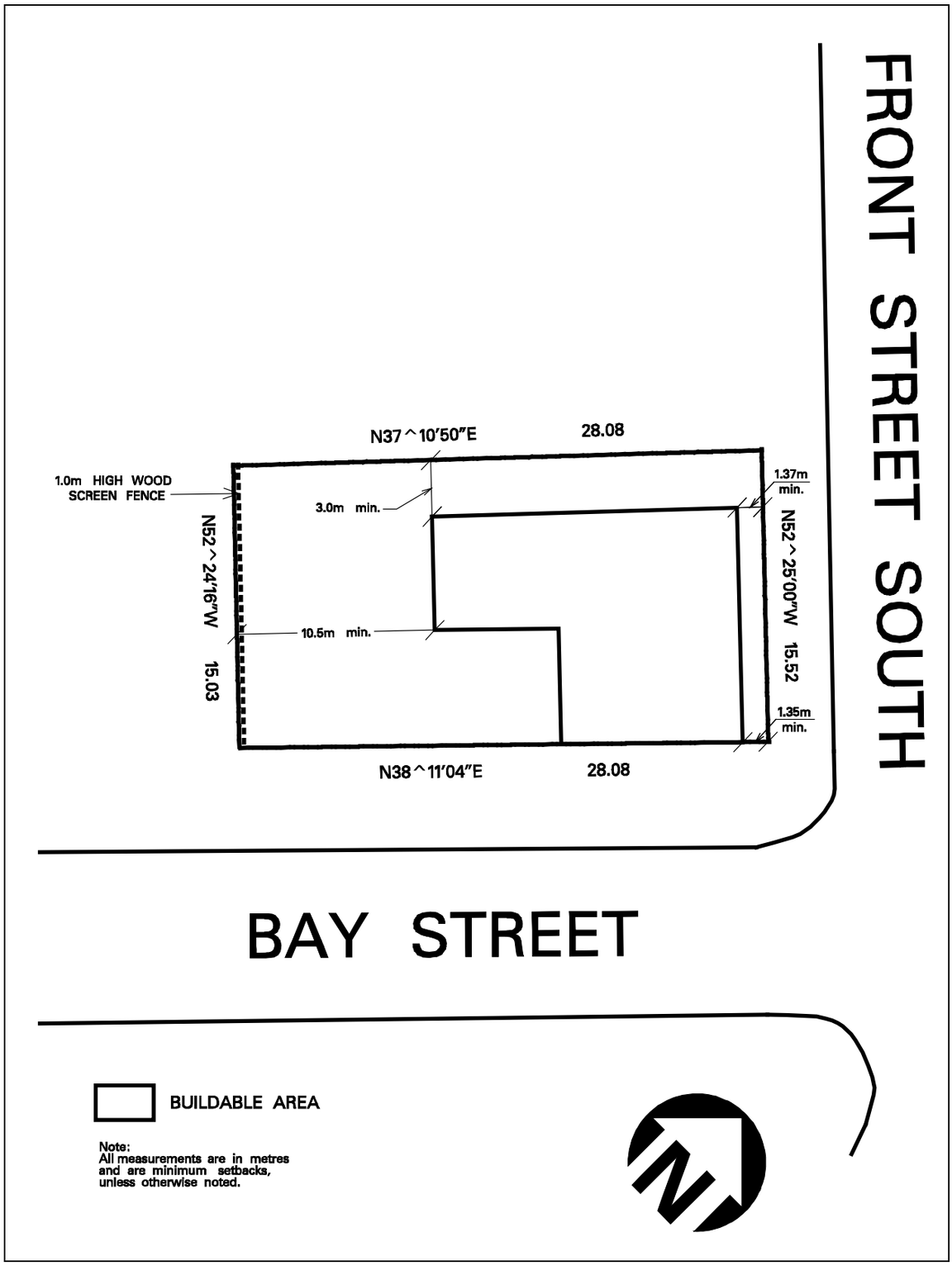
Additional Permitted Use		
6.2.5.48.1	(1)	One **detached dwelling** per **lot**
Uses Not Permitted		
6.2.5.48.2	(1)	**Retail Store**
	(2)	**Overnight Accommodation**
Regulations		
6.2.5.48.3	A **detached dwelling** shall comply with the RS zone regulations contained in Subsection 4.2.1 of this By-law except that:	
	(1) maximum **gross floor area - infill residential**	169 m^2 plus 0.20 times the **lot area** to a maximum of 305 m^2
	(2) minimum **landscaped area**	40% of the **lot area**
	(3) minimum **front yard**	5.0 m
	(4) minimum **interior** and **exterior side yards**	3.0 m on one side of the **lot** and 1.2 m on the other side
	(5) maximum **height - highest ridge**: **sloped roof**	9.0 m and 2 **storeys**
	(6) maximum height of eaves: from **established grade** to lower edge of the eaves	6.8 m
	(7) **flat roofs** and mansard roofs shall not be permitted	
	(8) maximum encroachment of a covered **porch** into a required **front**, **exterior** and **interior side yard**	1.8 m but not closer than 0.2 m to a **lot line**
	(9) minimum setback of a **garage face** behind the front wall of a **detached dwelling**	3.0 m
	(10) maximum gross **floor area** of a detached **garage**	30 m^2

Exception C4-48 continued on next page

6.2.5.48	Exception: C4-48	Map # 08	By-law: 0308-2011, 0181-2018/LPAT Order 2019 February 15, 0048-2025
Exception C4-48 continued from previous page			
6.2.5.48.3 (continued)	(11) "Front Wall" means the exterior wall containing the door which is designed as the primary access point into the **detached dwelling**		
6.2.5.48.4	The provisions of By-law Number 0272-2004 made pursuant to the *Ontario Heritage Act* shall not apply so as to require any reconstruction, alteration and/or enlargement of any **building** or **structure** to replicate the exterior faces or the exterior wall features of the **building** or **structure**		

6.2.5.49	Exception: C4-49	Map # 08	By-law: 0379-2009, 0174-2017, 0199-2024
In a C4-49 zone the permitted **uses** and applicable regulations shall be as specified for a C4 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Use			
6.2.5.49.1	(1) Apartment Hotel		
Regulations			
6.2.5.49.2	Maximum **height**		7 **storeys**
6.2.5.49.3	"Apartment Hotel" means a **building** used mainly for the purposes of catering to the public by supplying food and furnishing sleeping accommodation of not less than 20 **dwelling units**, suites of rooms, and/or individual bedrooms in which each **dwelling unit** or separate bedroom or suite shall have access to a common hall, each of which halls shall have two distinct and separate entrances from the outside		
6.2.5.49.4	*deleted*		

6.2.5.50	Exception: C4-50	Map # 08	By-law:
In a C4-50 zone the permitted **uses** and applicable regulations shall be as specified for a C4 zone except that the following **uses**/regulations shall apply:			
Regulation			
6.2.5.50.1	All site development plans shall comply with Schedule C4-50 of this Exception		



Schedule C4-50
Map 08

6.2.5.51	Exception: C4-51	Map # 39E	By-law:
In a C4-51 zone the permitted **uses** and applicable regulations shall be as specified for a C4 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Uses			
6.2.5.51.1	(1) **Active Recreational Use** (2) **Passive Recreational Use**		

6.2.5.52	Exception: C4-52	Map # 21	By-law: 0199-2024
In a C4-52 zone the permitted **uses** and applicable regulations shall be as specified for a C4 zone except that the following **uses**/regulations shall apply:			
Regulations			
6.2.5.52.1	Maximum **height - overnight accommodation**		42 **storeys**
6.2.5.52.2	Public use areas include meeting rooms, conference rooms, recreational facilities, dining and lounge areas and other commercial facilities, but exclude washrooms, lobbies, hallways and recreational facilities directly related to the function of the **overnight accommodation**		

6.2.5.53	Exception: C4-53	Map # 39E	By-law:
In a C4-53 zone the permitted **uses** and applicable regulations shall be as specified for a C4 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Use			
6.2.5.53.1	(1) **Detached dwelling** legally **existing** on the date of passing of this By-law		
Regulations			
6.2.5.53.2	Minimum depth of a **landscaped buffer** between a **lot line** that is a **street line** and a **parking area**		1.5 m
6.2.5.53.3	Maximum **height** of a **detached dwelling**		3 **storeys**

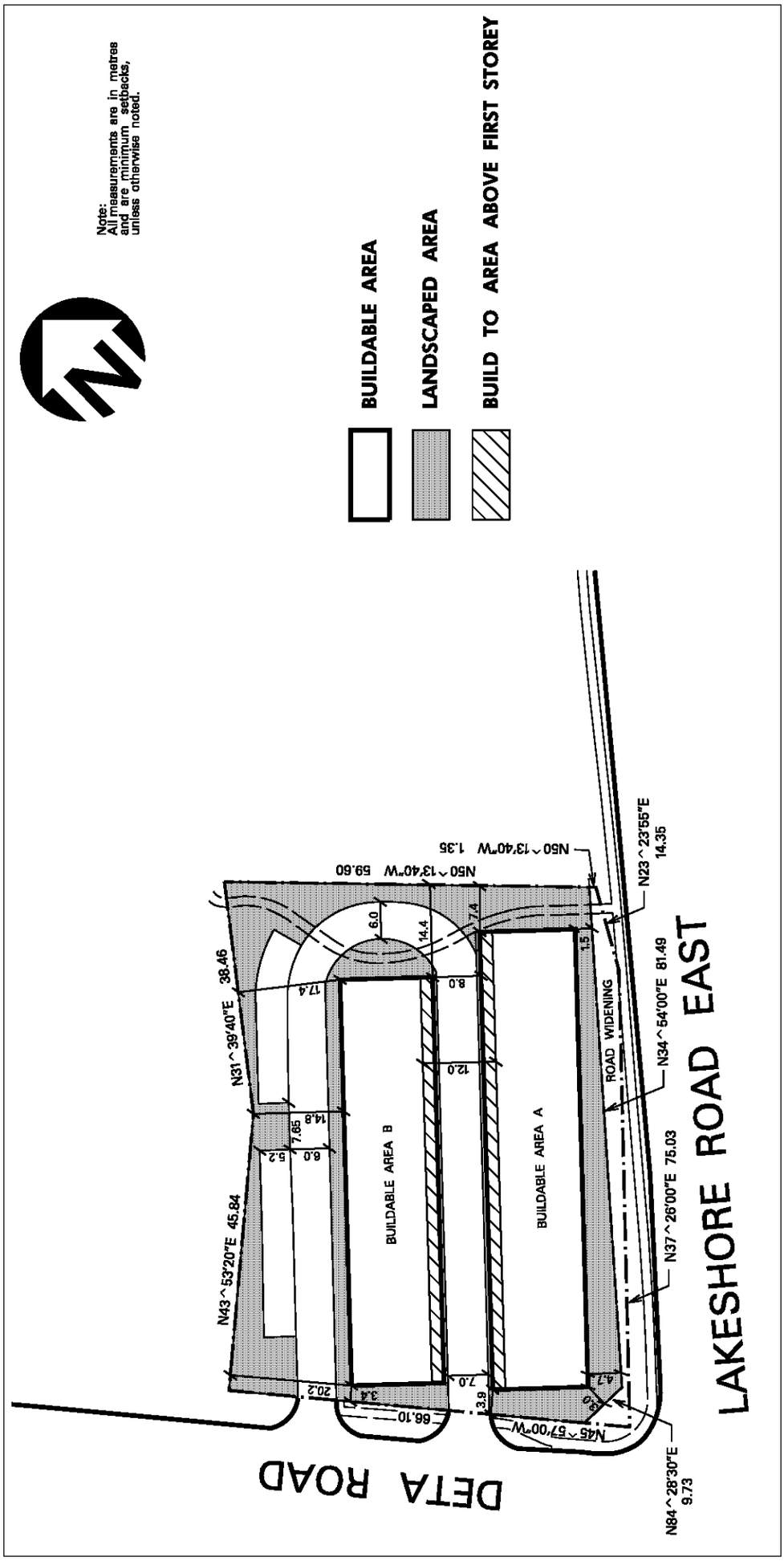
6.2.5.54	Exception: C4-54	Map # 10	By-law: 0325-2008, 0048-2025
In a C4-54 zone the permitted **uses** and applicable regulations shall be as specified for a C4 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Use			
6.2.5.54.1	(1) **Detached Dwelling**		
Regulations			
6.2.5.54.2	A **detached dwelling** shall comply with the RS zone regulations contained in Subsection 4.2.1 of this By-law except that:		
	(1) minimum **interior side yard** of all **buildings** and **structures** and **swimming pools** where lands abut a B zone		3.0 m

6.2.5.55	Exception: C4-55	Map # 08	By-law: 0169-2009 0126-2015, 0212-2015, 0086-2018, 0111-2019/ LPAT Order 2021 March 09, 0217-2023, 0199-2024
In a C4-55 zone the permitted **uses** and applicable regulations shall be as specified for a C4 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Use			
6.2.5.55.1	*deleted*		
Use Not Permitted			
6.2.5.55.2	(1) **Medical Office** (2) *deleted*		
Regulations			
6.2.5.55.3	The regulations of Line 3.0 contained in Table 3.1.4.3 of this By-law shall not apply		
6.2.5.55.4	Maximum **gross floor area - non-residential** of all **restaurants** and **take-out restaurants**		191 m^2
6.2.5.55.5	Minimum **rear yard** of a **building** or **structure** legally **existing** on the date of passing of this By-law		0.0 m
6.2.5.55.6	Maximum area of an outdoor patio accessory to a **restaurant**		15.1 m^2
6.2.5.55.7	Notwithstanding Article 6.1.1.1 of this By-law, retail sales accessory to a Commercial, Service or Office **use** contained in Table 6.2.1 of this By-law, and outdoor patios accessory to a **restaurant** and **take-out restaurant**, are permitted within the **yard** abutting Lakeshore Road East as a temporary use for the period of three years from the date of enactment and passing of this By-law (May 9, 2018)		

6.2.5.56	Exception: C4-56	Map # 05	By-law: 0349-2009, 0181-2018/LPAT Order 2019 February 15, 0111-2019/LPAT Order 2021 March 09, 0208-2022
In a C4-56 zone the applicable regulations shall be as specified for a C4 zone except that the following **uses**/regulations shall apply:			
Permitted Uses			
6.2.5.56.1	Lands zoned C4-56 shall only be used for the following: (1) **Stacked Townhouse** (2) Live/Work Unit		
Regulations			
6.2.5.56.2	Maximum number of **dwelling units**, of which a maximum of five may be live/work units		47
6.2.5.56.3	Maximum **gross floor area** in **Buildable Area** 'A' identified on Schedule C4-56 of this Exception		2 570 m^2
6.2.5.56.4	Maximum **gross floor area** in **Buildable Area** 'B' identified on Schedule C4-56 of this Exception		2 330 m^2

Exception C4-56 continued on next page

6.2.5.56	Exception: C4-56	Map # 05	By-law: 0349-2009, 0181-2018/LPAT Order 2019 February 15, 0111-2019/LPAT Order 2021 March 09, 0208-2022
Exception C4-56 continued from previous page			
6.2.5.56.5	Maximum **gross floor area - non-residential** of an **office**, **service establishment** or **retail store**		40 m^2
6.2.5.56.6	Maximum **floor space index**		0.9
6.2.5.56.7	Live/work units shall only be located within the **first storey** of **Buildable Area** 'A' identified on Schedule C4-56 of this Exception and shall have the **main front entrance** facing Lakeshore Road East		
6.2.5.56.8	Maximum number of risers between a **main front entrance** and a **lot line** abutting Lakeshore Road East, exclusive of a riser at the threshold of a **building**		4
6.2.5.56.9	Maximum encroachment into a required **yard** of a window, **chimney**, pilaster or corbel, window well, or **porch** and stairs with a maximum of four risers		0.61 m
6.2.5.56.10	Minimum number of **parking spaces** per one bedroom condominium stacked townhouse **dwelling unit** without exclusive use **garage** and **driveway**		1.0
6.2.5.56.11	Minimum number of **parking spaces** per two bedroom condominium stacked townhouse **dwelling unit** without exclusive use **garage** and **driveway**		1.3
6.2.5.56.12	Minimum number of **parking spaces** per one bedroom live/work unit without exclusive use **garage** and **driveway**		1.0
6.2.5.56.13	Minimum number of **parking spaces** per two bedroom live/work unit without exclusive use **garage** and **driveway**		1.3
6.2.5.56.14	Visitor parking shall be provided at the greater of: 0.21 **parking spaces** per stacked townhouse **dwelling unit** and live/work unit, or parking required for **office**, **service establishment** and **retail store uses** in accordance with Table 3.1.2.2 of this By-law		
6.2.5.56.15	All required visitor **parking spaces** must be accessible to all users and may not be reserved for a particular **use** or occupant		
6.2.5.56.16	"Live/Work Unit" means a stacked townhouse **dwelling unit** used partly for residential purposes and partly for an **office**, **service establishment** or **retail store**		
6.2.5.56.17	All site development plans shall comply with Schedule C4-56 of this Exception		



Schedule C4-56
Map 05

6.2.5.57	Exception: C4-57	Map # 10	By-law: OMB Order 2013 November 08/21, 0212-2015, 0174-2017, 0208-2022, 0217-2023, 0199-2024

In a C4-57 zone the permitted **uses** and applicable regulations shall be as specified for a C4 zone except that the following **uses**/regulations shall apply:

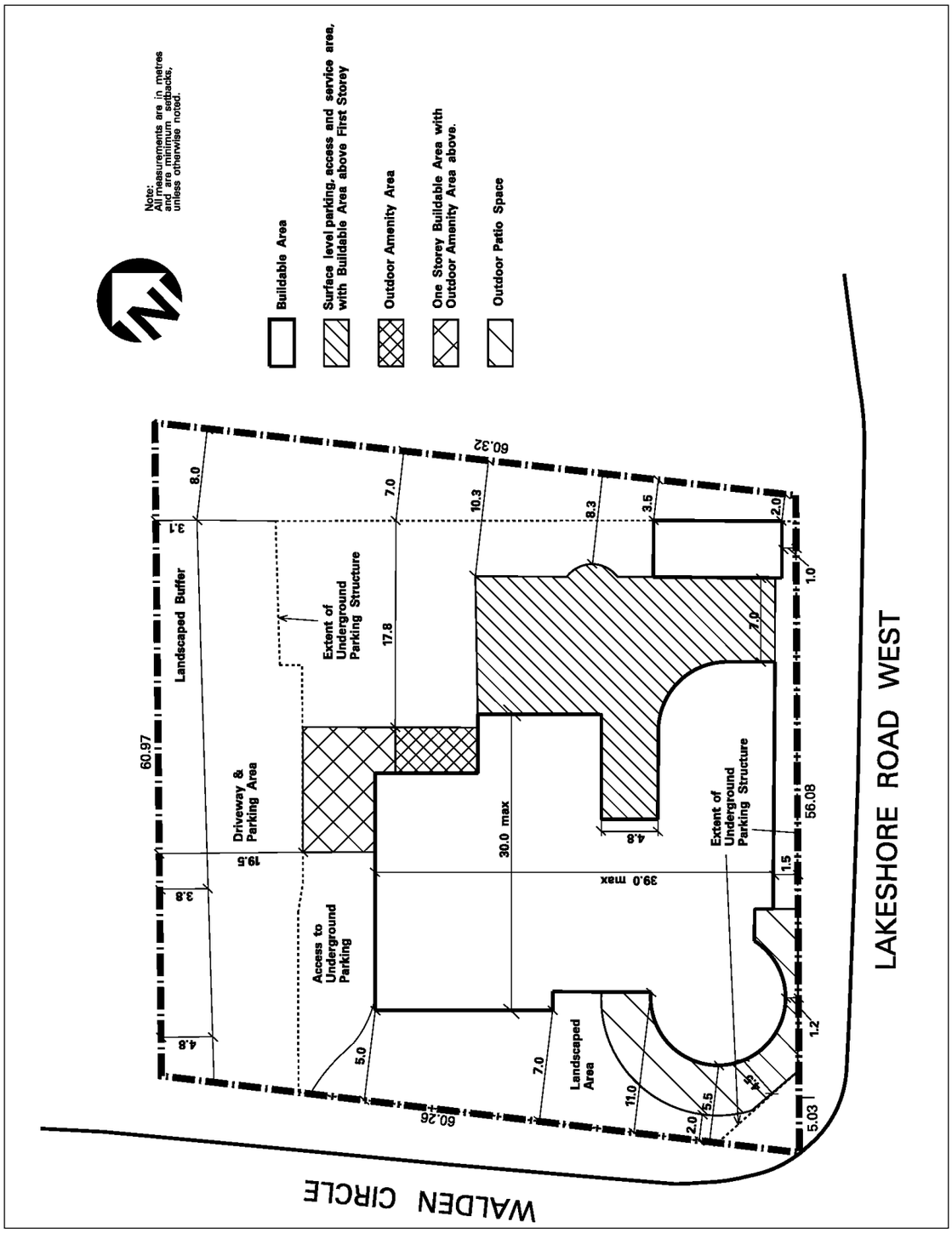
Additional Permitted Use		
6.2.5.57.1	*deleted*	
Regulations		
6.2.5.57.2	*deleted*	
6.2.5.57.3	All non-residential **uses** shall only be located on the **first storey** of the **building**	
6.2.5.57.4	All **dwelling units** shall be located above the **first storey** of the **building**	
6.2.5.57.5	Maximum number of apartment **dwelling units**	124
6.2.5.57.6	Maximum **floor space index - apartment zone**	3.3
6.2.5.57.7	Maximum **gross floor area - non-residential**	544 m^2
6.2.5.57.8	Maximum **gross floor area - non-residential** for all **restaurants** and **take-out restaurants**	302 m^2
6.2.5.57.9	Maximum **height**	54.0 m and 15 **storeys**
6.2.5.57.10	Maximum number of resident **parking spaces** that may be **tandem parking spaces**	4
6.2.5.57.11	A canopy may project outside the **buildable area** identified on Schedule C4-57 of this Exception	
6.2.5.57.12	All site development plans shall comply with Schedule C4-57 of this Exception	
Section 37 Financial Contribution		

Pursuant to section 37 of the *Planning Act*, R.S.O. 1990, c. P13, as amended, the height and density of development provided by this Exception shall be permitted subject to:

(1) the owner of the lands zoned C4-57 entering into an agreement with The Corporation of the City of Mississauga ("City") for the provision of certain facilities, services or matters in return for the increase in height and density of the development granted by this Exception as provided by section 37(3) of the *Planning Act*, R.S.O. 1990, c.P13;

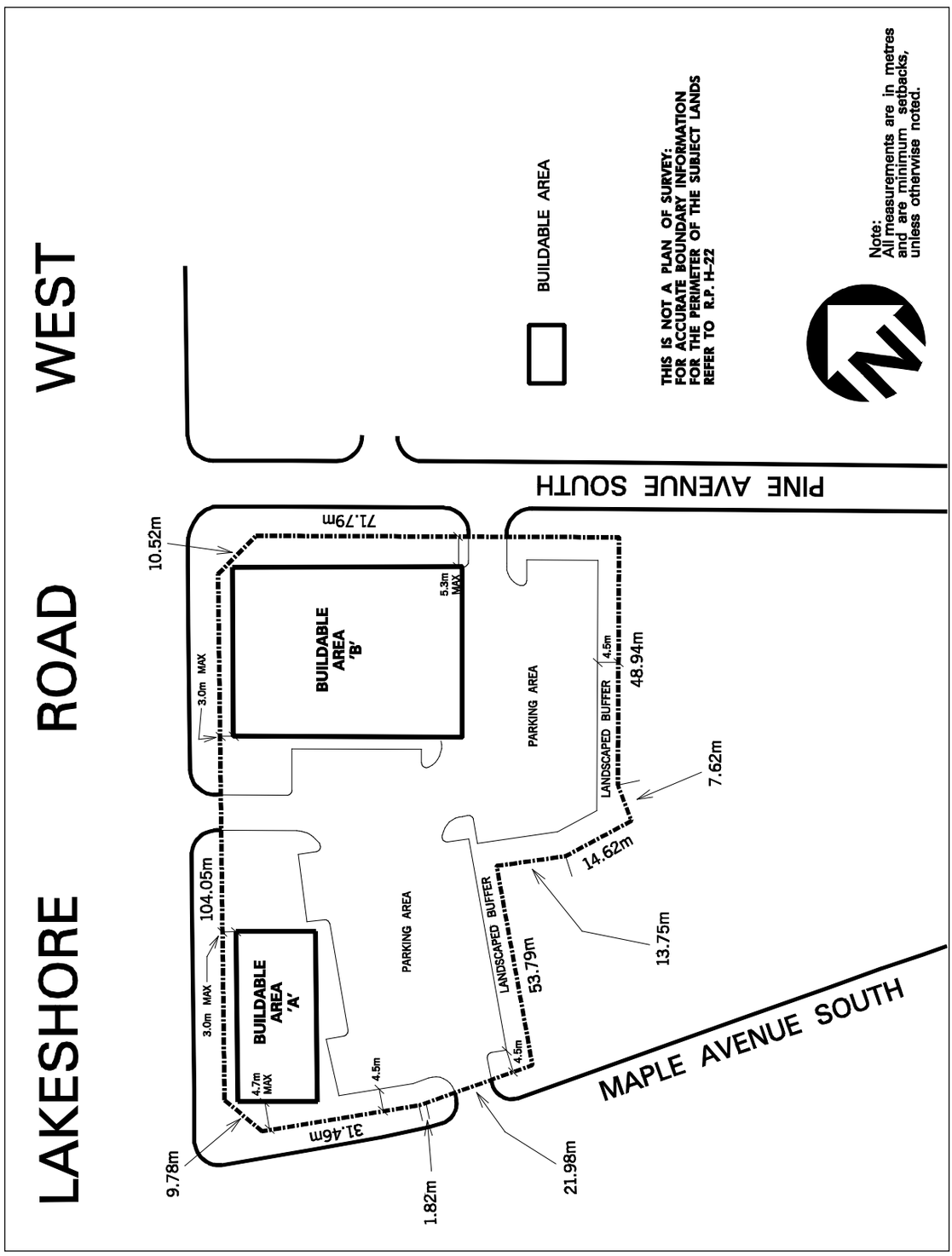
(2) the registration of the agreement on title to the lands zoned C4-57; and,

(3) the payment to the City by the owner of the lands zoned C4-57 of the sum of $110,000.00 to be applied towards improvements to the Lakeshore Road West streetscape including park benches, bike racks, outdoor art and Village entrance signs and compliance with all other terms and conditions of the agreement referred to in paragraphs (1) and (2) above.



Schedule C4-57
Map 10

6.2.5.58	Exception: C4-58	Map # 08	By-law: 0089-2011, 0208-2022
In a C4-58 zone the permitted **uses** and applicable regulations shall be as specified for a C4 zone except that the following **uses**/regulations shall apply:			
Regulations			
6.2.5.58.1	Minimum number of **parking spaces** used for a **medical office**		5.8 spaces per 100 m^2 **GFA - non-residential**
6.2.5.58.2	Minimum number of **parking spaces** used for a **retail store** in **Buildable Area** 'B' identified on Schedule C4-58 of this Exception		2.8 spaces per 100 m^2 **GFA - non-residential**
6.2.5.58.3	All site development plans shall comply with Schedule C4-58 of this Exception		



Schedule C4-58
Map 08

6.2.5.59	Exception: C4-59	Map # 08	By-law: 0281-2015, 0174-2017, 0130-2018, 0181-2018/LPAT Order 2019 February 15, 0111-2019/ LPAT Order 2021 March 09, 0208-2022, 0217-2023

In a C4-59 zone the applicable regulations shall be as specified for a C4 zone except that the following **uses**/regulations shall apply:

Permitted Uses

6.2.5.59.1 Lands zoned C4-59 shall only be used for the following:

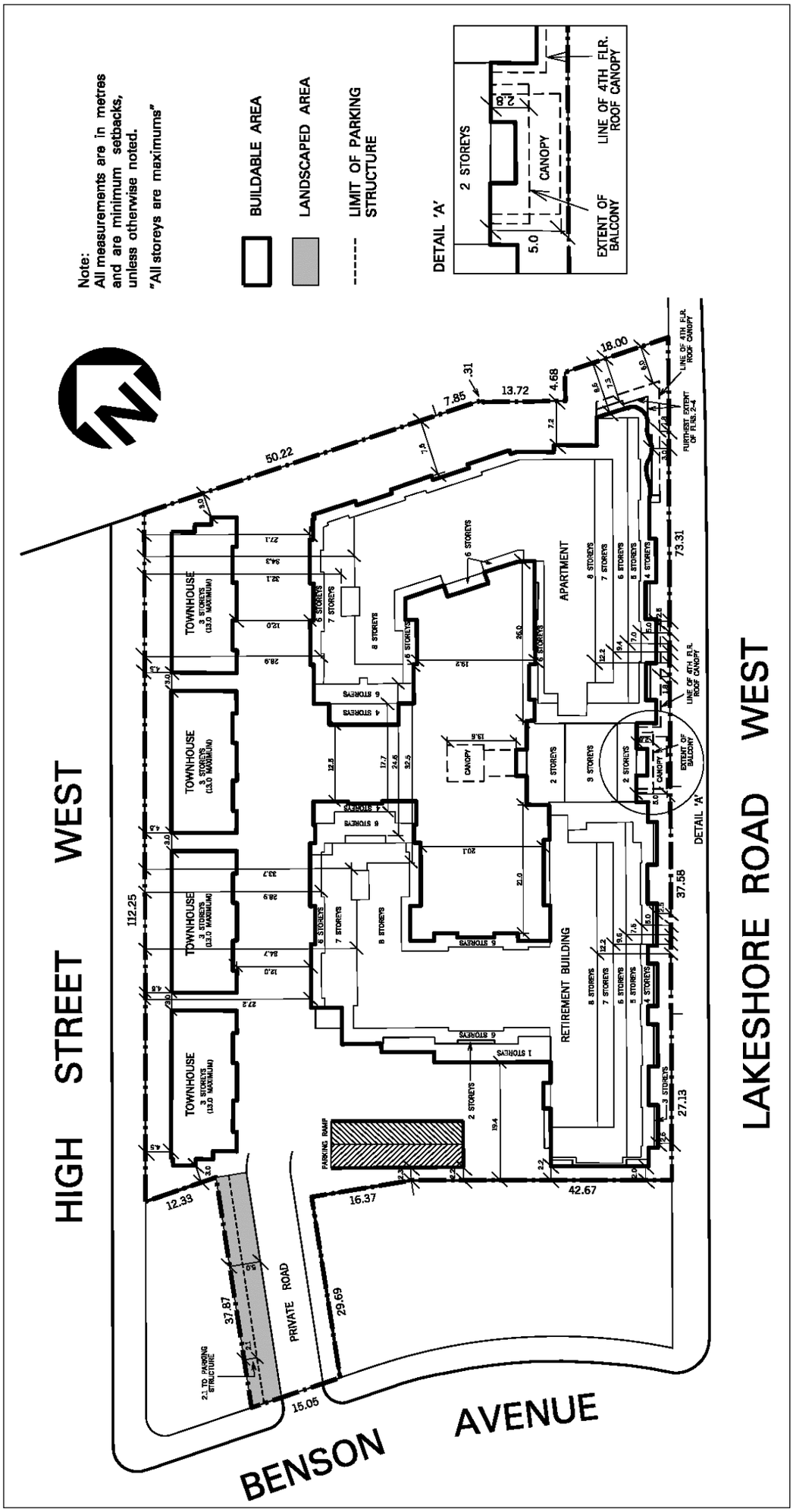
(1) **Apartment**
(2) **Retirement Building**
(3) Assisted Living Dwelling Unit
(4) **Townhouse**
(5) **Financial Institution**
(6) **Office**
(7) **Medical Office**
(8) **Service Establishment**
(9) **Repair Establishment**
(10) **Retail Store**
(11) **Restaurant**
(12) **Take-out Restaurant**
(13) *deleted*

Regulations

6.2.5.59.2	The provisions contained in Subsections 2.1.2, 2.1.25 and the regulations of Lines 12.3, 12.4, 14.0 and 16.0 contained in Table 6.2.1 of this By-law shall not apply	
6.2.5.59.3	Maximum number of **dwelling units**	325
6.2.5.59.4	Maximum number of townhouse **dwelling units**	16
6.2.5.59.5	For the purposes of this By-law, all lands zoned C4-59 shall be considered one **lot**	
6.2.5.59.6	Maximum **floor space index - apartment zone**	2.4
6.2.5.59.7	Maximum **gross floor area - non- residential** used for an **office**, **medical office**, **financial institution**, **service establishment**, **repair establishment**, **restaurant**, **take-out restaurant** or **retail store**, or any combination thereof	775 m^2
6.2.5.59.8	An **office**, **medical office**, **financial institution**, **service establishment**, **repair establishment**, **restaurant**, **take-out restaurant** or **retail store**, or any combination thereof, shall be located within the **first storey** of a **retirement building** and/or **apartment** along Lakeshore Road West	
6.2.5.59.9	Stairwells and elevator enclosures providing direct access to a roof top terrace shall not be included in the number of **storeys** for a **townhouse**	
6.2.5.59.10	Minimum **landscaped area**	35%
6.2.5.59.11	The **lot line** abutting Lakeshore Road West shall be deemed to be the **front lot line**	
6.2.5.59.12	Minimum number of resident **parking spaces** per one-bedroom or two-bedroom apartment **dwelling unit**	1.0
6.2.5.59.13	Minimum number of visitor **parking spaces** per apartment **dwelling unit**	0.19
6.2.5.59.14	Minimum number of **parking spaces** per **retirement dwelling unit**	0.40
6.2.5.59.15	Minimum number of **parking spaces** per assisted living dwelling unit	0.33

Exception C4-59 continued on next page

6.2.5.59	Exception: C4-59	Map # 08	By-law: 0281-2015, 0174-2017, 0130-2018, 0181-2018/LPAT Order 2019 February 15, 0111-2019/ LPAT Order 2021 March 09, 0208-2022, 0217-2023
Exception C4-59 continued from previous page			
6.2.5.59.16	Minimum number of **parking spaces** per 100 m^2 **gross floor area - non-residential** for an **office**, **medical office**, **financial institution**, **service establishment**, **repair establishment**, **take-out restaurant** or **retail store**		1.0
6.2.5.59.17	Minimum number of **parking spaces** per 100 m^2 **gross floor area - non-residential** for a **restaurant**		7.65
6.2.5.59.18	Minimum number of **loading spaces**		1
6.2.5.59.19	Minimum setback from a **parking structure** completely below or above finished grade to a **lot line** unless otherwise identified on Schedule C4-59 of this Exception		0.0 m
6.2.5.59.20	The maximum projections permitted beyond the **buildable area** shall be in compliance with the following:		
	(1) **porch**		1.5 m
	(2) awnings		1.5 m
	(3) window projections and other architectural elements, with or without a foundation, such as but not limited to fireplaces, pilasters and corbel		1.0 m
	(4) **balcony**		1.8 m
6.2.5.59.21	Stairs, walkways, planters and ventilation shafts are permitted to encroach into a required **landscaped area** and are permitted outside the **buildable area** identified on Schedule C4-59 of this Exception		
6.2.5.59.22	"Assisted Living Dwelling Unit" means a **retirement dwelling unit** within a **retirement building** occupied by persons with memory and/or cognitive impairment where a higher level of supervised support and care is provided compared to the rest of the **retirement building**, but whose residents do not require the services and support provided in a **long-term care building**		
6.2.5.59.23	All site development plans shall comply with Schedule C4-59 of this Exception		



Schedule C4-59
Map 08

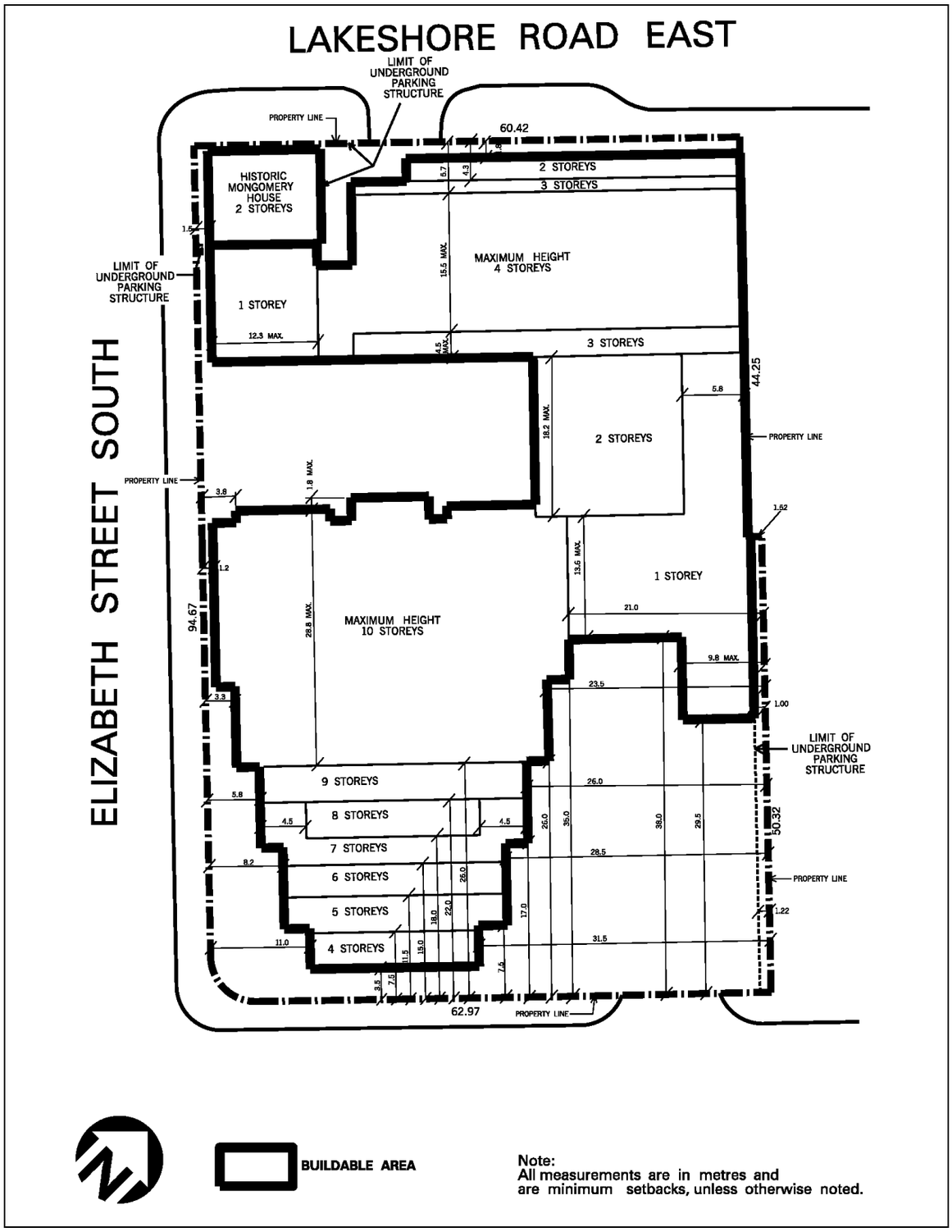
6.2.5.60	Exception: C4-60	Map # 08	By-law: 0031-2014/ OMB Order 2015 March 09, 0212-2015, 0126-2016, 0174-2017, 0111-2019/ LPAT Order 2021 March 09, 0217-2023, 0199-2024

In a C4-60 zone the permitted **uses** and applicable regulations shall be as specified for a C4 zone except that the following **uses**/regulations shall apply:

Additional Permitted Use		
6.2.5.60.1	*deleted*	
Regulations		
6.2.5.60.2	The provisions contained in Subsection 2.1.14 of this By-law shall not apply	
6.2.5.60.3	For the purposes of this By-law, all lands zoned C4-60 shall be considered one **lot**	
6.2.5.60.4	A unit on the **first storey** abutting Lakeshore Road East shall only contain non-residential **uses**	
6.2.5.60.5	Maximum number of **dwelling units**	56
6.2.5.60.6	Maximum total **gross floor area - apartment zone** and **gross floor area - non-residential**	14 650 m^2
6.2.5.60.7	Maximum **gross floor area - apartment zone** of all **buildings** and **structures** used for **apartments**	10 444 m^2
6.2.5.60.8	Maximum **gross floor area - non-residential** of all **buildings** and **structures** used for non-residential **uses**	4 206 m^2
6.2.5.60.9	Maximum **gross floor area - non-residential** used for **restaurants** and **take-out restaurants**, or any combination thereof	650 m^2
6.2.5.60.10	Minimum internal height of a **first storey** of a **building** or **structure**, measured between the top of the floor and the top of the floor next above it, of a unit abutting Lakeshore Road East, except for the historic Montgomery House identified on Schedule C4-60 of this Exception	5.0 m
6.2.5.60.11	Minimum setback from a **parking structure** completely below finished grade inclusive of external above grade access stairwells, to any **lot line**, unless otherwise identified on Schedule C4-60 of this Exception	0.0 m
6.2.5.60.12	An underground **parking structure** shall not be located beneath the historic Montgomery House identified on Schedule C4-60 of this Exception	
6.2.5.60.13	All site development plans shall comply with Schedule C4-60 of this Exception	

Exception C4-60 continued on next page

6.2.5.60	Exception: C4-60	Map # 08	By-law: 0031-2014/ OMB Order 2015 March 09, 0212-2015, 0126-2016, 0174-2017, 0111-2019/ LPAT Order 2021 March 09, 0217-2023, 0199-2024
Exception C4-60 continued from previous page			
Section 37 Financial Contribution			
Pursuant to section 37 of the *Planning Act*, R.S.O. 1990, c. P13, as amended, the height and density of development provided by this Exception shall be permitted subject to the owner of the lands zoned C4-60 entering into an agreement with The Corporation of the City of Mississauga (the City) for the provision of certain facilities, services or matters in return for the increase in height and density of development granted by this Exception as provided by section 37(3) of the *Planning Act*, R.S.O. 1990, c. P13, as amended. This agreement shall be registered on title to the lands zoned C4-60 and shall require the owner to undertake several actions, including the following: (1) the exterior restoration of the historic Montgomery House in keeping with the recommendations of the Heritage Impact Statement prepared by Joan Burt Architect dated February 2008, which shall cost at least $140,000.00; (2) the owner shall agree to the designation of Montgomery House under the provisions of the *Ontario Heritage Act*; and, (3) installation of public artworks within the courtyard that is fully accessible to the public. The public artworks will be commissioned through a process approved by the City's Culture Division, the cost of which shall be at least $40,000.00.			



Schedule C4-60
Map 08

6.2.5.61	Exception: C4-61	Map # 07	By-law: 0222-2013, 0181-2018/LPAT Order 2019 February 15, 0111-2019/LPAT Order 2021 March 09

In a C4-61 zone the applicable regulations shall be as specified for a C4 zone except that the following **use**/regulations shall apply:

Permitted Use		
6.2.5.61.1	Lands zoned C4-61 shall only be used for the following: (1) Live/Work Unit	
Regulations		
6.2.5.61.2	Maximum number of live/work units	15
6.2.5.61.3	Minimum **gross floor area - non-residential** of an **office**, **medical office - restricted**, **retail store**, **service establishment** or **repair establishment** in each live/work unit	35 m^2
6.2.5.61.4	Maximum **gross floor area - non-residential** of an **office**, **medical office - restricted, retail store**, **service establishment**, or **repair establishment** in each live/work unit	94 m^2
6.2.5.61.5	An **office**, **medical office - restricted**, **retail store**, **service establishment** and **repair establishment** shall only be located within the **first storey** and **basement** and shall have the **main front entrance** facing Lakeshore Road East or facing lands zoned C4-14	
6.2.5.61.6	A maximum of one **office** or one **medical office - restricted** or one **retail store** or one **service establishment** or one **repair establishment** shall be permitted in each live/work unit	
6.2.5.61.7	The **lot line** abutting Lakeshore Road East and lands zoned C4-14 shall be deemed to be the **front lot line**	
6.2.5.61.8	Minimum **lot area - interior lot**	100 m^2
6.2.5.61.9	Minimum **lot area - corner lot**	190 m^2
6.2.5.61.10	Minimum **lot frontage - interior lot**	5.0 m
6.2.5.61.11	Minimum **lot frontage - corner lot**	8.3 m
6.2.5.61.12	Minimum **dwelling unit width**	5.0 m
6.2.5.61.13	Maximum **front yard**	5.6 m
6.2.5.61.14	Minimum **exterior side yard - lot** with an **exterior side lot line** abutting a **CEC - road**	3.4 m
6.2.5.61.15	Maximum **exterior side yard - lot** with an **exterior side lot line** abutting a **CEC - road**	6.5 m
6.2.5.61.16	Minimum **interior side yard - attached side**	0.0 m
6.2.5.61.17	Minimum **interior side yard - lot** with an **interior side lot line** abutting a CEC - sidewalk	1.0 m
6.2.5.61.18	Minimum setback to all lands zoned G1	4.0 m
6.2.5.61.19	Minimum **rear yard**	6.0 m
6.2.5.61.20	Minimum setback from a **garage face** to a **CEC - road**	6.0 m
6.2.5.61.21	Maximum **height - highest ridge**	16.0 m and 4 **storeys**
6.2.5.61.22	Minimum depth of a **landscaped buffer** measured from a **lot line** where the **lot line** abuts a Greenlands Zone	4.0 m
6.2.5.61.23	Maximum encroachment of a **porch** or **deck** inclusive of stairs located at and accessible from the **first storey** into the required **rear yard**	2.5 m

Exception C4-61 continued on next page

6.2.5.61	Exception: C4-61	Map # 07	By-law: 0222-2013, 0181-2018/LPAT Order 2019 February 15, 0111-2019/LPAT Order 2021 March 09
Exception C4-61 continued from previous page			
6.2.5.61.24	Maximum encroachment of a **balcony** into the required **rear yard**		1.5 m
6.2.5.61.25	Parking shall be permitted to be located between a **streetwall** and a **lot line** that is a **street line**		
6.2.5.61.26	**Driveways**, **aisles**, and visitor parking may be shared with abutting lands zoned RM6-16		
6.2.5.61.27	For the purposes of this By-law, all lands zoned C4-61 and RM6-16 shall be considered one **lot**		
6.2.5.61.28	"Live/Work Unit" means a **townhouse** unit used partly for residential purposes and partly for an **office**, **medical office - restricted**, **retail store**, **service establishment** or **repair establishment**		

6.2.5.62	Exception: C4-62	Map # 07	By-law: OMB Order 2013 November 13, 0049-2015, 0086-2017, 0086-2018, 0111-2019/ LPAT Order 2021 March 09, 0217-2023
In a C4-62 zone the permitted **uses** and applicable regulations shall be as specified for a C4 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Use			
6.2.5.62.1	(1) *deleted*		
Regulations			
6.2.5.62.2	The provisions contained in Subsection 2.1.17 of this By-law shall not apply		
6.2.5.62.3	Maximum **building height - flat roof**		14.0 m and 3 **storeys**
6.2.5.62.4	Minimum depth of **landscaped buffer** abutting lands zoned G1		2.4 m
6.2.5.62.5	Minimum number of **loading spaces**		2
6.2.5.62.6	**Motor vehicle** parking shall be provided in accordance with Part 3 of this By-law and Table 6.2.5.62.6 of this Exception		

Table 6.2.5.62.6

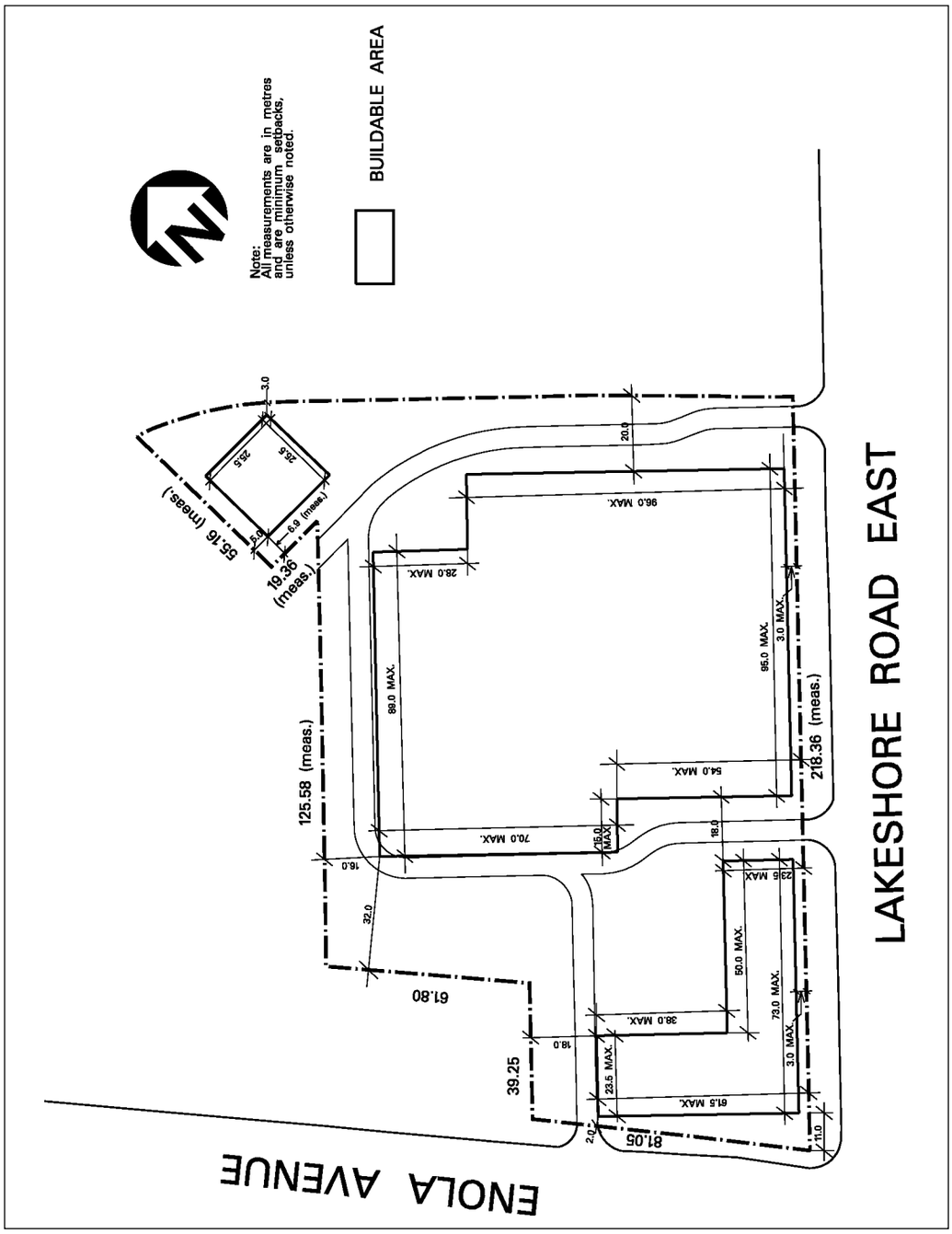
Column 1	Column 2
TYPE OF USE	**MINIMUM OFF-STREET PARKING REGULATIONS**
Retail store, **service establishment**, **repair establishment** with a unit size less than or equal to 2 300 m^2	3.0 spaces per 100 m^2 **GFA - non-residential**
Retail store, **service establishment**, **repair establishment** with a unit size greater than 2 300 m^2	3.7 spaces per 100 m^2 **GFA - non-residential**
Financial institution and **medical office**	4.85 spaces per 100 m^2 **GFA - non-residential**
Take-out Restaurant	4.85 spaces per 100 m^2 **GFA - restaurant**
Office	3.0 spaces per 100 m^2 **GFA - non-residential**

Exception C4-62 continued on next page

6.2.5.62	Exception: C4-62	Map # 07	By-law: OMB Order 2013 November 13, 0049-2015, 0086-2017, 0086-2018, 0111-2019/ LPAT Order 2021 March 09, 0217-2023

Exception C4-62 continued from previous page

6.2.5.62.7	For the purpose of Article 3.1.2.3 - Mixed Use Development Shared Parking of this By-law, the following formula shall apply:				
Table 6.2.5.62.7	**Percentage of Peak Period (Weekday)**				
	Land Use	**Morning**	**Noon**	**Afternoon**	**Evening**
	Office/Medical Office	100	90	95	10
	deleted				
	Financial Institution	70	75	100	80
	Retail store/service establishment and **repair establishment**	50	50	70	75
	Restaurant/Take-out Restaurant	25	65	25	100
Table 6.2.5.62.8	**Percentage of Peak Period (Weekend)**				
	Land Use	**Morning**	**Noon**	**Afternoon**	**Evening**
	Office/Medical Office	10	10	10	10
	deleted				
	Financial Institution	90	90	90	20
	Retail store/service establishment and **repair establishment**	50	75	100	10
	Restaurant/Take-out Restaurant	20	90	50	100
6.2.5.62.9	For the purposes of this By-law, all lands zoned C4-62 shall be considered one **lot**				
6.2.5.62.10	Notwithstanding Article 6.1.1.1 of this By-law, retail sales accessory to a Commercial, Service, or Office **use** contained in Table 6.2.1 of this By-law, and outdoor patios accessory to a **restaurant** and **take-out restaurant**, are permitted within the **yard** abutting Lakeshore Road East and Enola Avenue as a temporary use for the period of three years from the date of enactment and passing of this By-law (May 9, 2018)				
6.2.5.62.11	All site development plans shall comply with Schedule C4-62 of this Exception				



Schedule C4-62
Map 07

6.2.5.63	Exception: C4-63	Map # 03, 10	By-law: 0194-2014/ OMB Order 2016 March 11, 0181-2018/LPAT Order 2019 February 15, 0111-2019/LPAT Order 2021 March 09

In a C4-63 zone the permitted **uses** and applicable regulations shall be as specified for a C4 zone except that the following **uses**/regulations shall apply:

Additional Permitted Use		
6.2.5.63.1	(1) **Back to Back** and **Stacked Townhouses**	
Uses Not Permitted		
6.2.5.63.2	(1) **Retail store** greater than 600 m^2 **gross floor area - non-residential** (2) **Parking Lot**	
Regulations		
6.2.5.63.3	Maximum floor space index - residential	2.0
6.2.5.63.4	Minimum **front yard**	0.6 m
6.2.5.63.5	Minimum **exterior side yard**	0.6 m
6.2.5.63.6	Minimum **interior side yard** abutting lands zoned Residential or Greenlands	7.5 m plus 1.0 m for each additional 1.0 m of **building height** or portion thereof, exceeding 10.0 m
6.2.5.63.7	Minimum **rear yard** abutting lands zoned Residential or Greenlands	7.5 m plus 1.0 m for each additional 1.0 m of **building height** or portion thereof, exceeding 10.0 m
6.2.5.63.8	A minimum of 75% of the **first storey** of a **building** or **structure** shall contain commercial **uses** where it has a **streetwall** facing Lakeshore Road West	
6.2.5.63.9	Maximum **height**	4 **storeys**
6.2.5.63.10	Minimum first storey height measured from the finished floor of the first storey to the underside of the finished ceiling	4.5 m
6.2.5.63.11	Minimum setback from the front exterior face of the third **storey** to the front exterior face of the fourth **storey** of a **building** or **structure**	6.0 m
6.2.5.63.12	Minimum length of a **streetwall** along Lakeshore Road West where there is **driveway** access to a **street**	70% of **lot frontage**
6.2.5.63.13	Minimum length of a **streetwall** along Lakeshore Road West where there is no **driveway** access to a **street** or the **driveway** access to a **street** is shared with an abutting property	90% of **lot frontage**
6.2.5.63.14	Non-residential **uses** located on the **first storey** shall have the **main front entrance** facing Lakeshore Road West	
6.2.5.63.15	Minimum percentage of glazing of the **first storey** of a **streetwall**	60%
6.2.5.63.16	Minimum number of **parking spaces** per 100 m^2 **gross floor area - non-residential** for a **retail store**, **animal care establishment**, **service establishment**, **repair establishment** or **office**, provided that the **gross floor area - non-residential** is less than or equal to 300 m^2	3.0
6.2.5.63.17	Where the floor space index - residential is greater than 1.0, required parking shall be provided within a **parking structure** located either above or below grade	
6.2.5.63.18	Maximum **height** of an above grade **parking structure**	2 **storeys**

Exception C4-63 continued on next page

6.2.5.63	Exception: C4-63	Map # 03, 10	By-law: 0194-2014/OMB Order 2016 March 11, 0181-2018/LPAT Order 2019 February 15, 0111-2019/ LPAT Order 2021 March 09
Exception C4-63 continued from previous page			
6.2.5.63.19	Above grade **parking structures** adjacent to a **street** shall have residential and/or non-residential **uses** with a minimum depth of 10.0 m along a **streetwall** of both the first and second **storey**		
6.2.5.63.20	"Floor Space Index - Residential" means the ratio of the **gross floor area** of all **buildings** and **structures**, exclusive of **gross floor area - non-residential**, to the **lot area**		

6.2.5.64	Exception: C4-64	Map # 10	By-law: 0194-2014/ OMB Order 2016 March 11, 0181-2018/LPAT Order 2019 February 15, 0111-2019/LPAT Order 2021 March 09
In a C4-64 zone the permitted **uses** and applicable regulations shall be as specified for a C4 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Use			
6.2.5.64.1	(1) **Back to Back** and **Stacked Townhouses**		
Uses Not Permitted			
6.2.5.64.2	(1) **Retail store** greater than 600 m^2 **gross floor area - non-residential** (2) **Parking Lot**		
Regulations			
6.2.5.64.3	Maximum floor space index - residential		1.5
6.2.5.64.4	Minimum **front yard**		0.6 m
6.2.5.64.5	Minimum **exterior side yard**		0.6 m
6.2.5.64.6	Minimum **interior side yard** abutting lands zoned Residential or Greenlands		7.5 m plus 1.0 m for each additional 1.0 m of **building height** or portion thereof, exceeding 10.0 m
6.2.5.64.7	Minimum **rear yard** abutting lands zoned Residential or Greenlands		7.5 m plus 1.0 m for each additional 1.0 m of **building height** or portion thereof, exceeding 10.0 m
6.2.5.64.8	A minimum of 75% of the **first storey** of any **building** or **structure** shall contain commercial **uses** where it has a **streetwall** facing Lakeshore Road West		
6.2.5.64.9	Maximum **height**		3 **storeys**
6.2.5.64.10	Minimum first storey height measured from the finished floor of the first storey to the underside of the finished ceiling		4.5 m
6.2.5.64.11	Minimum length of a **streetwall** along Lakeshore Road West where there is **driveway** access to a **street**		70% of **lot frontage**
6.2.5.64.12	Minimum length of a **streetwall** along Lakeshore Road West where there is no **driveway** access to a **street** or the **driveway** access to a **street** is shared with an abutting property		90% of **lot frontage**

Exception C4-64 continued on next page

6.2.5.64	Exception: C4-64	Map # 10	By-law: 0194-2014/ OMB Order 2016 March 11, 0181-2018/LPAT Order 2019 February 15, 0111-2019/LPAT Order 2021 March 09
Exception C4-64 continued from previous page			
6.2.5.64.13	Non-residential **uses** located on the **first storey** shall have the **main front entrance** facing Lakeshore Road West		
6.2.5.64.14	Minimum percentage of glazing of the **first storey** of a **streetwall**		60%
6.2.5.64.15	Minimum number of **parking spaces** per 100 m^2 **gross floor area - non-residential** for a **retail store**, **animal care establishment**, **service establishment**, **repair establishment** or **office**, provided that the **gross floor area - non-residential** is less than or equal to 300 m^2		3.0
6.2.5.64.16	Where the floor space index - residential is greater than 1.0, required parking shall be provided within a **parking structure** located below grade		
6.2.5.64.17	"Floor Space Index - Residential" means the ratio of the **gross floor area** of all **buildings** and **structures**, exclusive of **gross floor area - non-residential**, to the **lot area**		

6.2.5.65	Exception: C4-65	Map # 03	By-law: 0194-2014/ OMB Order 2016 March 11, 0181-2018/LPAT Order 2019 February 15, 0111-2019/LPAT Order 2021 March 09
In a C4-65 zone the permitted **uses** and applicable regulations shall be as specified for a C4 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Use			
6.2.5.65.1	(1) **Back to Back** and **Stacked Townhouses**		
Uses Not Permitted			
6.2.5.65.2	(1) **Retail store** greater than 600 m² **gross floor area - non-residential** (2) **Parking Lot**		
Regulations			
6.2.5.65.3	Maximum floor space index - residential		1.5
6.2.5.65.4	Minimum **front yard**		0.6 m
6.2.5.65.5	Minimum **exterior side yard**		0.6 m
6.2.5.65.6	Minimum **interior side yard** abutting lands zoned Residential or Greenlands		7.5 m plus 1.0 m for each additional 1.0 m of **building height** or portion thereof, exceeding 10.0 m
6.2.5.65.7	Minimum **rear yard** abutting lands zoned Residential or Greenlands		7.5 m plus 1.0 m for each additional 1.0 m of **building height** or portion thereof, exceeding 10.0 m
6.2.5.65.8	A minimum of 75% of the **first storey** of any **building** or **structure** shall contain commercial **uses** where it has a **streetwall** facing Lakeshore Road West		

Exception C4-65 continued on next page

6.2.5.65	Exception: C4-65	Map # 03	By-law: 0194-2014/ OMB Order 2016 March 11, 0181-2018/LPAT Order 2019 February 15, 0111-2019/LPAT Order 2021 March 09
Exception C4-65 continued from previous page			
6.2.5.65.9	Maximum **height**		4 **storeys**
6.2.5.65.10	Minimum first storey height measured from the finished floor of the first storey to the underside of the finished ceiling		4.5 m
6.2.5.65.11	Minimum setback from the front exterior face of the third **storey** to the front exterior face of the fourth **storey** of a **building** or **structure**		6.0 m
6.2.5.65.12	Minimum length of a **streetwall** along Lakeshore Road West where there is **driveway** access to a **street**		70% of **lot frontage**
6.2.5.65.13	Minimum length of a **streetwall** along Lakeshore Road West where there is no **driveway** access to a **street** or the **driveway** access to a **street** is shared with an abutting property		90% of **lot frontage**
6.2.5.65.14	Non-residential **uses** located on the **first storey** shall have the **main front entrance** facing Lakeshore Road West		
6.2.5.65.15	Minimum percentage of glazing of the **first storey** of a **streetwall**		60%
6.2.5.65.16	Minimum number of **parking spaces** per 100 m^2 **gross floor area - non-residential** for a **retail store**, **animal care establishment**, **service establishment**, **repair establishment** or **office**, provided that the **gross floor area - non-residential** is less than or equal to 300 m^2		3.0
6.2.5.65.17	Where the floor space index - residential is greater than 1.0, required parking shall be provided within a **parking structure** located below grade		
6.2.5.65.18	"Floor Space Index - Residential" means the ratio of the **gross floor area** of all **buildings** and **structures**, exclusive of **gross floor area - non-residential**, to the **lot area**		

6.2.5.66	Exception: C4-66	Map # 07, 08	By-law: 0126-2015, 0086-2018
In a C4-66 zone the permitted **uses** and applicable regulations shall be as specified for a C4 zone except that the following **uses**/regulations shall apply:			
Regulation			
6.2.5.66.1	Notwithstanding Article 6.1.1.1 of this By-law, retail sales accessory to a Commercial, Service or Office **use** contained in Table 6.2.1 of this By-law, and outdoor patios accessory to a **restaurant**, **take-out restaurant** and billiard hall, are permitted within the **yard** abutting Lakeshore Road East and Lakeshore Road West as a temporary use for the period of three years from the date of enactment and passing of this By-law (May 9, 2018)		

6.2.5.67	Exception: C4-67	Map # 10	By-law: 0194-2014/ OMB Order 2016 March 11, 0181-2018/LPAT Order 2019 February 15, 0111-2019/LPAT Order 2021 March 09

In a C4-67 zone the permitted **uses** and applicable regulations shall be as specified for a C4 zone except that the following **uses**/regulations shall apply:

Additional Permitted Uses		
6.2.5.67.1	(1) **Back to Back** and **Stacked Townhouses** (2) Commercial **building** legally **existing** on the date of passing of this By-law	
Use Not Permitted		
6.2.5.67.2	(1) **Parking Lot**	
Regulations		
6.2.5.67.3	The maximum number of **retail stores** greater than 600 m^2 **gross floor area - non-residential** but less than or equal to 2 750 m^2 **gross floor area - non-residential**	1
6.2.5.67.4	Expansion or alteration to the **building** legally **existing** on the date of passing of this By-law shall be permitted and shall not be subject to the regulation of Sentence 6.2.5.67.3 of this Exception	
6.2.5.67.5	Maximum floor space index - residential	2.5
6.2.5.67.6	Minimum **front yard**	0.6 m
6.2.5.67.7	Minimum **exterior side yard**	0.6 m
6.2.5.67.8	Minimum **interior side yard** abutting lands zoned Residential or Greenlands	7.5 m plus 1.0 m for each additional 1.0 m of **building height** or portion thereof, exceeding 10.0 m
6.2.5.67.9	Minimum **rear yard** abutting lands zoned Residential or Greenlands	7.5 m plus 1.0 m for each additional 1.0 m of **building height** or portion thereof, exceeding 10.0 m
6.2.5.67.10	A minimum of 75% of the **first storey** of a **building** or **structure** shall contain commercial **uses** where it has a **streetwall** facing Lakeshore Road West	
6.2.5.67.11	Maximum **height**	8 **storeys**
6.2.5.67.12	Minimum first storey height measured from the finished floor of the first storey to the underside of the finished ceiling	4.5 m
6.2.5.67.13	Minimum setback from the front exterior face of the third **storey** to the front exterior face of the fourth **storey** of a **building** or **structure**	6.0 m
6.2.5.67.14	Minimum length of a **streetwall** along Lakeshore Road West where there is **driveway** access to a **street**	70% of **lot frontage**
6.2.5.67.15	Minimum length of a **streetwall** along Lakeshore Road West where there is no **driveway** access to a **street** or the **driveway** access to a **street** is shared with an abutting property	90% of **lot frontage**
6.2.5.67.16	Non-residential **uses** located on the **first storey** and within 20.0 m of Lakeshore Road West shall have the **main front entrance** facing Lakeshore Road West	
6.2.5.67.17	Minimum percentage of glazing of the **first storey** of a **streetwall**	50%

Exception C4-67 continued on next page

6.2.5.67	Exception: C4-67	Map # 10	By-law: 0194-2014/ OMB Order 2016 March 11, 0181-2018/LPAT Order 2019 February 15, 0111-2019/LPAT Order 2021 March 09

Exception C4-67 continued from previous page

6.2.5.67.18	Minimum number of **parking spaces** per 100 m^2 **gross floor area - non-residential** for a **retail store**, **animal care establishment**, **service establishment**, **repair establishment** or **office**, provided that the **gross floor area - non-residential** is less than or equal to 300 m^2	3.0
6.2.5.67.19	Minimum number of **parking spaces** per 100 m^2 **gross floor area - non-residential** for **retail store**, **animal care establishment** or **office**, provided that the **gross floor area - non-residential** is between 300 m^2 and 2 750 m^2	4.0
6.2.5.67.20	Where the floor space index - residential is greater than 1.0, required parking shall be provided within a **parking structure** located either above or below grade	
6.2.5.67.21	Maximum **height** of an above grade **parking structure**	2 **storeys**
6.2.5.67.22	Above grade **parking structures** adjacent to a **street** shall have residential and/or non-residential **uses** with a minimum depth of 10.0 m along a **streetwall** of both the first and second **storey**	
6.2.5.67.23	"Floor Space Index - Residential" means the ratio of the **gross floor area** of all **buildings** and **structures**, exclusive of **gross floor area** - **non-residential**, to the **lot area**	
6.2.5.67.24	"Urban Square" means an outdoor area on a **lot**, located at grade, for passive recreational uses, such as seating areas by the general public. An urban square may include hard and soft landscape elements such as grass, flowers, shrubs, trees, as well as walkways and berms, but shall not include **driveways**, ramps, **aisles**, **condominium roads**, **parking areas** or any exterior garbage or handling areas	

Section 37 Financial Contribution

Pursuant to section 37 of the *Planning Act*, R.S.O. 1990, c.P13, as amended, the height and density of development provided by this Exception shall be permitted subject to:

(1) the owner of the lands zoned C4-67 entering into an agreement with the Corporation of the City of Mississauga (the City) for the provision of certain facilities, services or matters in return for the increase in height and density of the development granted by this Exception as provided by section 37(3) of the Planning Act, R.S.O. 1990, c.P13;

(2) the registration of the agreement on title to the lands zoned C4-67; and,

(3) the owner undertaking to complete or providing full compensation for the completion of:

- (3.1) lay-by parking and streetscape improvements along the entire Lakeshore Road West frontage of the subject lands;
- (3.2) the provision of an urban square, to the satisfaction of the City, on site for the use of the public; and,
- (3.3) the granting of a public use easement in accordance with the Access Management Plan contained in Mississauga Official Plan and compliance with all other terms referred to in paragraphs (1) and (2) above.

6.2.5.68	Exception: C4-68	Map # 48W	By-law: 0132-2017, 0111-2019/LPAT Order 2021 March 09

In a C4-68 zone the applicable regulations shall be as specified for a C4 zone except that the following **uses**/regulations shall apply:

Permitted Uses

6.2.5.68.1 Lands zoned C4-68 shall only be used for the following:

(1) **Retail Store**
(2) **Service Establishment**
(3) **Office**
(4) **Dwelling unit** located above the **first storey** of a commercial **building**

Regulations

6.2.5.68.2	Maximum **front yard**	4.0 m
6.2.5.68.3	Maximum **exterior side yard**	4.5 m
6.2.5.68.4	Minimum depth of a **landscaped buffer** measured from any other **lot line**	3.0 m

Holding Provision

The holding symbol H is to be removed from the whole or any part of the lands zoned H-C4-68 by further amendment to Map 48W of Schedule B contained in Part 13 of this By-law, as amended, upon satisfaction of the following requirement:

(1) submission of a complete Record of Site Condition (RSC) and final Environmental Report satisfactory to the City confirming satisfactory environmental remediation of the lands;
(2) delivery of an executed agreement for community benefits pursuant to section 37 of the *Planning Act*, as amended, in a form and on terms satisfactory to the City.

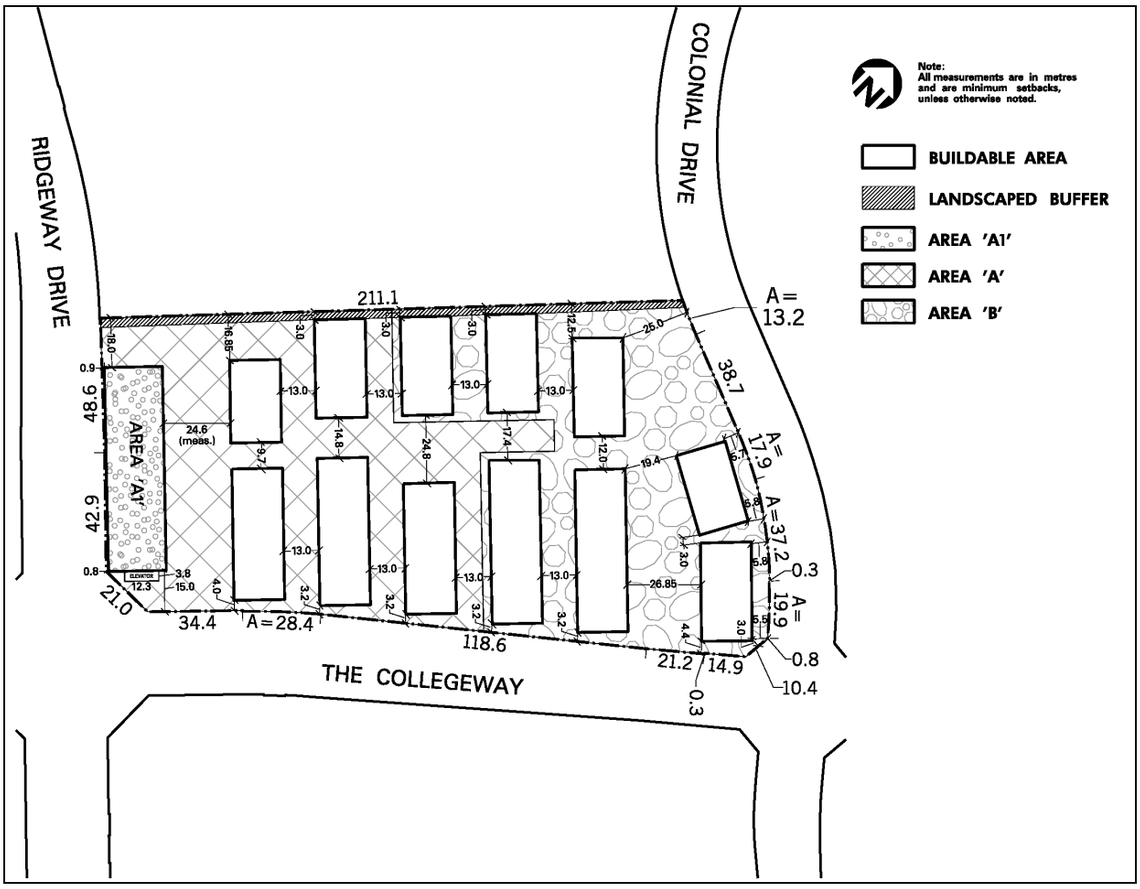
6.2.5.69	Exception: C4-69	Map #	By-law: 0179-2017, *deleted by 0111-2019/LPAT Order 2021 March 09*

6.2.5.70	Exception: C4-70	Map #	By-law: 0179-2017, 0181-2018/LPAT Order 2019 February 15, *deleted by 0111-2019/LPAT Order 2021 March 09*

6.2.5.71	Exception: C4-71	Map # 15	By-law: 0125-2020, 0111-2019/LPAT Order 2021 March 09
In a C4-71 zone the applicable regulations shall be as specified for a C4 zone except that the following **uses**/regulations shall apply:			
Permitted Uses			
6.2.5.71.1	Lands zoned C4-71 shall only be used for the following: (1) **Dwelling unit** located above the **first storey** of a commercial **building** (2) **Back to Back** and **Stacked Townhouses** (3) **Retail Store** (4) **Service Establishment** (5) **Office**		
Regulations			
6.2.5.71.2	The regulations of Article 3.1.2.2 and Subsection 3.1.4 of this By-law shall not apply		
6.2.5.71.3	The **uses** contained in Clauses 6.2.5.71.1(3) to 6.2.5.71.1(5) of this Exception shall not be located above the **first storey**		
6.2.5.71.4	For the purposes of this By-law, all lands zoned C4-71 shall be considered one **lot**		
6.2.5.71.5	Minimum **interior side yard** abutting lands with a Residential Zone		1.2 m
6.2.5.71.6	Minimum depth of a **landscaped buffer** abutting **interior side lot lines**		1.2 m
6.2.5.71.7	Minimum depth of a **landscaped buffer** abutting the **rear lot line**		2.7 m
6.2.6.71.8	Minimum depth of a **landscaped buffer** abutting the **front lot line**, inclusive of stairs with a maximum of three risers		2.5 m
6.2.5.71.9	Minimum number of resident **parking spaces** per **dwelling unit**, which may be located within a **garage**		1.25
6.2.5.71.10	Minimum number of **parking spaces** per 100 m^2 **gross floor area - non-residential** for **uses** identified in Clauses 6.2.5.71.1(3) to 6.2.5.71(5) of this Exception		4.0

6.2.5.72	Exception: C4-72	Map # 10	By-law: OMB Order 2018 March 08, 0181-2018/ LPAT Order 2019 February 15, 0191-2021
In a C4-72 zone the permitted **uses** and applicable regulations shall be as specified for a C4 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Use			
6.2.5.72.1	(1) Back to Back Stacked Townhouse		
Regulations			
6.2.5.72.2	The regulation of Line 14.0 contained in Table 6.2.1 of this By-law shall not apply		
6.2.5.72.3	Minimum setback of a dwelling to a railway right-of-way		20.0 m
6.2.5.72.4	Maximum number of **dwelling units**		136
6.2.5.72.5	Maximum **gross floor area - residential**		15 665 m^2
6.2.5.72.6	Maximum **gross floor area - non-residential**		2 675 m^2
6.2.5.72.7	Maximum **height**		14.5 m and 4 **storeys**
6.2.5.72.8	Minimum **front yard** to a residential **building**		4.0 m
6.2.5.72.9	Minimum **front yard** to a non-residential **building**		5.8 m
6.2.5.72.10	Minimum **interior side yard** abutting lands zoned OS1		3.0 m
6.2.5.72.11	Minimum **interior side yard** abutting a railway right-of-way		0.0 m
6.2.5.72.12	Minimum **rear yard**		6.4 m
6.2.5.72.13	Maximum encroachment into a **front** and **rear yard** of a **porch**, inclusive of stairs, located at or below the **first storey** of a **dwelling unit**		4.0 m
6.2.5.72.14	Maximum encroachment of an awning, window, **chimney**, pilaster or corbel into a required **yard**		0.6 m
6.2.5.72.15	Minimum depth of a **landscaped buffer** abutting lands zoned OS1		3.0 m
6.2.5.72.16	Minimum **landscaped buffer** abutting the **rear lot line**		3.0 m
6.2.5.72.17	Planters and walkways shall be permitted to encroach into a **landscaped buffer** abutting the **rear lot line**		
6.2.5.72.18	Minimum internal setback from a **front wall** of a **building** containing a **dwelling unit** to a **front wall** of another **building** containing a **dwelling unit** on the same **lot**		13.0 m
6.2.5.72.19	Minimum setback of a residential **building** to a **condominium road**		1.5 m
6.2.5.72.20	Minimum setback of a non-residential **building** to a **condominium road**		3.0 m
6.2.5.72.21	Minimum width of a **condominium road**		6.0 m
6.2.5.72.22	Minimum number of resident **parking spaces** per one-bedroom **dwelling unit**		1.0
6.2.5.72.23	Minimum number of resident **parking spaces** per two-bedroom **dwelling unit**		1.3
6.2.5.72.24	Minimum number of visitor **parking spaces** per **dwelling unit**		0.2
6.2.5.72.25	Maximum number of residential visitor **parking spaces** that may be used as shared parking for **office uses**		15

6.2.5.73	Exception: C4-73	Map # 59	By-law: LPAT Order 2020 March 17, 0208-2022, 0217-2023
In a C4-73 zone the permitted **uses** and applicable regulations shall be as specified for a C4 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Use			
6.2.5.73.1	(1) **Stacked Townhouse**		
Regulations			
6.2.5.73.2	The provisions contained in Subsection 2.1.19 of this By-law shall not apply		
6.2.5.73.3	Residential **uses** shall not be located on the **first storey** in Area 'A1' identified on Schedule C4-73 of this Exception		
6.2.5.73.4	Non-residential **uses** shall only be located in Area 'A1' identified on Schedule C4-73 of this Exception		
6.2.5.73.5	Minimum **gross floor area - non-residential**		2 475 m^2
6.2.5.73.6	Maximum combined **floor space index**		1.65
6.2.5.73.7	Maximum **building height**: **flat roof**		16.5 m and 4 **storeys**
6.2.5.73.8	Maximum projection of a **porch** or patio, inclusive of stairs, facing The Collegeway, outside the **buildable areas** identified on Schedule C4-73 of this Exception		1.6 m
6.2.5.73.9	Maximum projection of a **porch** or patio, inclusive of stairs, facing Colonial Drive, outside the **buildable areas** identified on Schedule C4-73 of this Exception		3.5 m
6.2.5.73.10	Maximum projection of an awning, window or other architectural feature outside the **buildable areas** identified on Schedule C4-73 of this Exception		0.6 m
6.2.5.73.11	Maximum projection of a **balcony** located at or above the **first storey** of a **stacked townhouse** outside the **buildable areas** identified on Schedule C4-73 of this Exception		1.0 m
6.2.5.73.12	External access stairwells and ventilation shafts shall be permitted outside the **buildable areas**		
6.2.5.73.13	Minimum width of a **condominium road**		6.5 m
6.2.5.73.14	Minimum width of a sidewalk		1.5 m
6.2.5.73.15	Minimum number of resident **parking spaces** per stacked townhouse **dwelling unit**		1.2
6.2.5.73.16	Required number of **parking spaces** for combined visitor/non-residential **uses**		0.2 visitor/ non-residential spaces per **dwelling unit**
6.2.5.73.17	Required number of **accessible parking spaces**		3
6.2.5.73.18	Required number of **loading spaces**		1
6.2.5.73.19	Minimum **amenity area** in Area 'A' identified on Schedule C4-73 of this Exception		1 230 m^2
6.2.5.73.20	Minimum **amenity area** in Area 'B' identified on Schedule C4-73 of this Exception		1 186 m^2
6.2.5.73.21	Maximum **gross floor area - non-residential** of a utility or maintenance **structure**		20 m^2
6.2.5.73.22	Utility or maintenance **structures** shall not be located in a **landscaped buffer**		
6.2.5.73.23	All site development plans shall comply with Schedule C4-73 of this Exception		



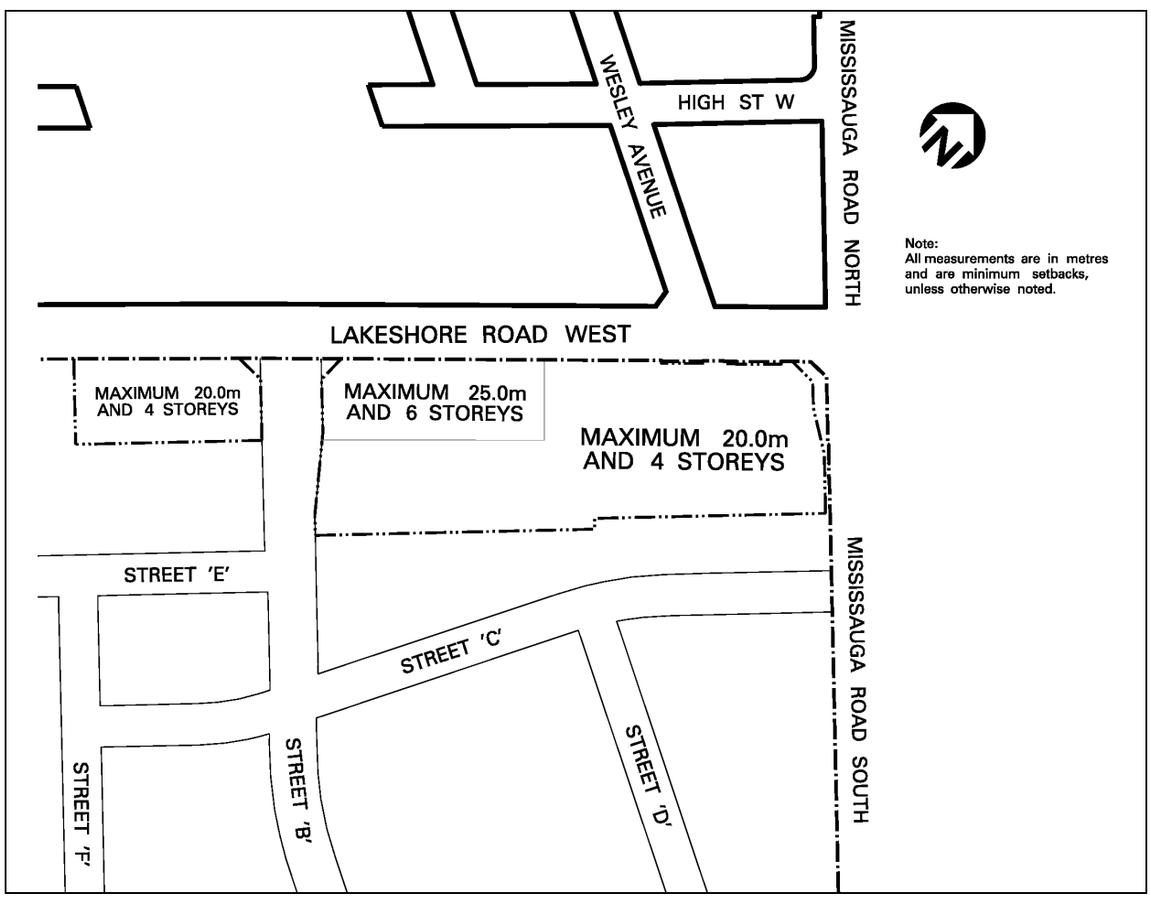
Schedule C4-73
Map 59

6.2.5.74	Exception: C4-74	Map # 08	By-law: LPAT Order 2019 November 15, 0217-2023
In a C4-74 zone the permitted **uses** and applicable regulations shall be as specified for a C4 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Uses			
6.2.5.74.1	(1) **Townhouse** (2) *deleted* (3) **Custom Workshop**		
Regulations			
6.2.5.74.2	**Dwelling units** shall not be permitted on the **first storey** within 6.0 m of Lakeshore Road West		
6.2.5.74.3	The **lot line** abutting Lakeshore Road West shall be deemed to be the **front lot line**		
6.2.5.74.4	Maximum **front** and **exterior side yards**		6.0 m
6.2.5.74.5	Minimum setback to Lakeshore Road West		4.0 m
6.2.5.74.6	Maximum **height**: **flat roof**		15.0 m and 4 **storeys**
6.2.5.74.7	Minimum depth of a **landscaped buffer** in an **exterior side yard**		1.5 m
6.2.5.74.8	Minimum number of resident **parking spaces** per **dwelling unit**		1.0
6.2.5.74.9	Minimum number of visitor **parking spaces** per **dwelling unit**		0.15

6.2.5.75	Exception: C4-75	Map # 08	By-law: LPAT Order 2019 November 15, 0217-2023
In a C4-75 zone the permitted **uses** and applicable regulations shall be as specified for a C4 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Uses			
6.2.5.75.1	(1) **Retirement Building** (2) Outdoor Market (3) *deleted* (4) **Custom Workshop** (5) Temporary Sales Centre (6) **Science and Technology Facility** (7) **Cogeneration Facility**		
Regulations			
6.2.5.75.2	The regulations of Lines 11.0, 12.1, 12.2, 12.3 and 12.4 contained in Table 6.2.1 of this By-law shall not apply		
6.2.5.75.3	For the purpose of this By-law, Lakeshore Road West will be deemed to be the **front lot line**		
6.2.5.75.4	**Dwelling units** are not permitted on the **first storey**		
6.2.5.75.5	Maximum setback to Mississauga Road South		6.0 m
6.2.5.75.6	Minimum setback from a one **storey building** or **structure** to Street 'B'		5.0 m
6.2.5.75.7	Maximum setback from a one **storey building** or **structure** to Street 'B'		25.0 m
6.2.5.75.8	Minimum **rear yard** abutting a Residential Zone		3.0 m

Exception C4-75 continued on next page

6.2.5.75	Exception: C4-75	Map # 08	By-law: LPAT Order 2019 November 15, 0217-2023
Exception C4-75 continued from previous page			
6.2.5.75.9	Minimum setback, exclusive of a sight triangle, to Lakeshore Road West		4.0 m
6.2.5.75.10	Maximum setback to Lakeshore Road West		6.0 m
6.2.5.75.11	Minimum **height** of a **building** within 15.0 m of Lakeshore Road West		2 **storeys**
6.2.5.75.12	Notwithstanding Sentence 6.2.5.75.11 of this Exception, the maximum length of the **streetwall** of a **building** that may be one **storey** abutting Lakeshore Road West		12.0 m
6.2.5.75.13	Minimum number of resident **parking spaces** per **dwelling unit**		1.0
6.2.5.75.14	Minimum number of visitor **parking spaces** per **dwelling unit**		0.15
6.2.5.75.15	Minimum number of **parking spaces** per **retirement dwelling unit**		0.3
6.2.5.75.16	"Temporary Sales Centre" means a one **storey building** or **structure** used for the sale, lease or rent of **dwelling units**. A temporary sales centre shall be permitted for a period of three years from the date of enactment of this By-law		
6.2.5.75.17	All site development plans shall comply with Schedule C4-75 of this Exception		



Schedule C4-75
Map 08

Refer to Minister Zoning Order (MZO) O. Reg. 91/23 2023 May 12			
6.2.5.76	Exception: C4-76	Map # 01	By-law: 0119-2022, 0217-2023
In a C4-76 zone the permitted **uses** and applicable regulations shall be as specified for a C4 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Uses			
6.2.5.76.1	(1) **Long-Term Care Building** (2) **Retirement Building** (3) *deleted*		
Uses Not Permitted			
6.2.5.76.2	(1) **Funeral Establishment** (2) **Private Club** (3) University/College		
Regulations			
6.2.5.76.3	Residential **uses** shall not be permitted on the **first storey** facing Lakeshore Road East		
6.2.5.76.4	Maximum **gross floor area - apartment zone** per **storey** for each **storey** above 12 **storeys**		1 000 m^2
6.2.5.76.5	The **lot line** abutting Lakeshore Road East shall be deemed to be the **front lot line**		
6.2.5.76.6	Minimum **front yard** for the portion of the **building** with a **height** less than or equal to 15.0 m		4.0 m
6.2.5.76.7	Minimum **front yard** for the portion of the **building** with a **height** greater than 15.0 m		7.0 m
6.2.5.76.8	Minimum **exterior side yard** for the portion of the **building** with a **height** less than or equal to 15.0 m		2.0 m
6.2.5.76.9	Minimum **exterior side yard** for the portion of the **building** with a **height** less than or equal to 15.0 m		5.0 m
6.2.5.76.10	Minimum **exterior side yard** for the portion of the **building** containing residential **uses** and with a **height** less than or equal to 15.0 m		4.0 m
6.2.5.76.11	Minimum **exterior side yard** for the portion of the **building** containing residential **uses** and with a **height** greater than 15.0 m		7.0 m
6.2.5.76.12	Minimum **rear yard**		7.5 m
6.2.5.76.13	Maximum **height**		52.5 m and 15 **storeys**
6.2.5.76.14	Notwithstanding Sentence 6.2.5.76.7 of this Exception, minimum setback for that portion of the dwelling with a **height** greater than eight **storeys** and facing the **lot line** abutting Lakeshore Road East		25.0 m
6.2.5.76.15	Notwithstanding Sentence 6.2.5.76.3 of this Exception, maximum length of a **building streetwall** on the **first storey** facing Lakeshore Road East that may be used for accessing residential **uses** located above the **first storey**		15%
6.2.5.76.16	Minimum setback of all **buildings** and above grade **structures** to all lands zoned G2-5		5.0 m
6.2.5.76.17	Minimum depth of a **landscaped buffer** measured to a G2-5 zone		2.0 m
6.2.5.76.18	Minimum setback of **parking areas**, **driveways**, **loading spaces**, other paved areas to a G2-5 zone		2.0 m

Exception C4-76 continued on next page

Refer to Minister Zoning Order (MZO) O. Reg. 91/23 2023 May 12			
6.2.5.76	Exception: C4-76	Map # 01	By-law: 0119-2022, 0217-2023
Exception C4-76 continued from previous page			
6.2.5.76.19	Minimum setback of an underground **parking structure** to a G2-5 zone		3.0 m
6.2.5.76.20	Minimum **gross floor area - non-residential** located on the **first storey**		4 000 m^2
6.2.5.76.21	Minimum setback from a **parking structure** below finished grade, inclusive of external access stairwells, to a **lot line**		1.0 m
6.2.5.76.22	Notwithstanding Sentence 6.2.5.76.21 of this Exception, minimum setback from a **parking structure** below finished grade, inclusive of external access stairwells, to the **front lot line** abutting Lakeshore Road East		3.0 m
6.2.5.76.23	**Driveways**, **aisles** and **parking areas** may be shared with abutting lands zoned RM9-3 and RA5-59		
6.2.5.76.24	Maximum amount of required resident **parking spaces** that may be tandem		10%
Holding Provision			
	The holding symbol H is to be removed from the whole or any part of the lands zoned H-C4-76 by further amendment to Map 01 of Schedule B contained in Part 13 of this By-law, as amended, upon satisfaction of the following requirement: (1) the provisions contained in Article 2.1.33.7 of this By-law as they relate to lands zoned H-C4-76 and subject to holding provisions H1, H2, H3 and H5.		

Refer to Minister Zoning Order (MZO) O. Reg. 91/23 2023 May 12			
6.2.5.77	Exception: C4-77	Map # 01	By-law: 0119-2022, 0217-2023
In a C4-77 zone the permitted **uses** and applicable regulations shall be as specified for a C4 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Uses			
6.2.5.77.1	(1) **Retirement Building** (2) Brewery Restaurant (3) Outdoor patio accessory to a brewery restaurant		
Uses Not Permitted			
6.2.5.77.2	(1) **Funeral Establishment** (2) **Private Club**		
Regulations			
6.2.5.77.3	Residential **uses** shall not be permitted on the **first storey**		
6.2.5.77.4	Maximum **gross floor area - non-residential** of a **retail store**		550 m^2
6.2.5.77.5	Maximum **gross floor area - non-residential** of a **recreational establishment**		300 m^2
6.2.5.77.6	Minimum **front** and **exterior side yards** on the **first storey**		3.0 m
6.2.5.77.7	Minimum **front yard** for that portion of the dwelling with a **height** greater than six **storeys** facing Street 'D'		15.0 m
6.2.5.77.8	Minimum **rear yard** for that portion of the dwelling with a **height** greater than six **storeys**		7.5 m

Exception C4-77 continued on next page

Refer to Minister Zoning Order (MZO) O. Reg. 91/23 2023 May 12			
6.2.5.77	Exception: C4-77	Map # 01	By-law: 0119-2022, 0217-2023
Exception C4-77 continued from previous page			
6.2.5.77.9	Minimum **interior side yard** on the **first storey** abutting an OS2-19 zone		3.0 m
6.2.5.77.10	Minimum **interior side yard** above the **first storey** and below the seventh **storey** abutting an OS2-19 zone		0.0 m
6.2.5.77.11	Minimum **interior side yard** for that portion of the dwelling with a **height** greater than six **storeys** abutting an OS2-19 zone		3.0 m
6.2.5.77.12	Minimum **interior side** and **rear yards** for that portion of the dwelling with a **height** up to and including six **storeys** abutting a C4-78 zone		4.5 m
6.2.5.77.13	Minimum **interior side yard** for that portion of the dwelling with a **height** greater than six **storeys** abutting a C4-78 zone		7.5 m
6.2.5.77.14	Maximum **height**		42.5 m and 12 **storeys**
6.2.5.77.15	Notwithstanding Sentence 6.2.5.77.14 of this Exception, maximum **height** for a **building** at the southeast corner of Street 'A' and Street 'H' identified on Schedule 2.1.33 of this By-law		75.5 m and 22 **storeys**
6.2.5.77.16	Minimum above grade separation between **buildings** for that portion of the dwelling with a **height** greater than eight **storeys**		30.0 m
6.2.5.77.17	Notwithstanding Sentence 6.2.5.77.3 of this Exception, maximum length of a **building streetwall** on the **first storey** that may be used for accessing residential **uses** located above the **first storey**		15%
6.2.5.77.18	Minimum setback from a **parking structure** below finished grade, inclusive of stairwells, to a **lot line**		1.0 m
6.2.5.77.19	Minimum depth of a **landscaped buffer** abutting the **lot line** of an OS2-19 zone		0.0 m
6.2.5.77.20	**Driveways**, **aisles** and **parking areas** may be shared with abutting lands zoned C4-78 and RA5-59		
6.2.5.77.21	Maximum amount of required resident **parking spaces** that may be tandem		10%
6.2.5.77.22	"Brewery Restaurant" means a **building**, **structure** or part thereof, used for the purpose of manufacturing alcoholic beverages and shall contain a **restaurant** with a maximum **gross floor area - non-residential** of 220 m^2 or 50% of the total **gross floor area - non-residential** whichever is lesser		
Holding Provision			
	The holding symbol H is to be removed from the whole or any part of the lands zoned H-C4-77 by further amendment to Map 01 of Schedule B contained in Part 13 of this By-law, as amended, upon satisfaction of the following requirement: (1) the provisions contained in Article 2.1.33.7 of this By-law as they relate to lands zoned H-C4-77 and subject to holding provisions H1, H2 and H3.		

Refer to Minister Zoning Order (MZO) O. Reg. 91/23 2023 May 12			
6.2.5.78	Exception: C4-78	Map # 01	By-law: 0119-2022, 0217-2023
In a C4-78 zone the permitted **uses** and applicable regulations shall be as specified for a C4 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Uses			
6.2.5.78.1	(1) **Science and Technology Facility** (2) **Banquet Hall/Conference Centre/Convention Centre** (3) **Custom Workshop** (4) Live/Work Unit (5) *deleted* (6) Contractor's yard operated on or on behalf of a **public authority** (7) Community Cultural Centre		
Uses Not Permitted			
6.2.5.78.2	(1) **Funeral Establishment** (2) **Private Club**		
Regulations			
6.2.5.78.3	Apartment **dwelling units** shall only be permitted above the **first storey** of a **building**		
6.2.5.78.4	Maximum **height**		29.5 m and 8 **storeys**
6.2.5.78.5	Maximum length of a **building streetwall** on the **first storey** that may be used for accessing residential **uses** located above the **first storey**		15%
6.2.5.78.6	Maximum **gross floor area - non-residential** of a **retail store**		250 m^2
6.2.5.78.7	**Driveways** and **aisles** may be shared with abutting lands zoned C4-77		
6.2.5.78.8	Required parking may be located on lands zoned C4-78 or E1-30		
6.2.5.78.9	"Community Cultural Centre" means a **building**, **structure** or part thereof, for the provision of community activities, such as, but not limited to, recreation, arts, crafts, museums, social and charitable activities		
6.2.5.78.10	"Live/Work Unit" means a **townhouse** used partly for residential purposes and partly for an **office**, **retail store**, **service establishment**, **custom workshop** or **repair establishment**		
Holding Provision			
	The holding symbol H is to be removed from the whole or any part of the lands zoned H-C4-78 by further amendment to Map 01 of Schedule B contained in Part 13 of this By-law, as amended, upon satisfaction of the following requirement: (1) the provisions contained in Article 2.1.33.7 of this By-law as they relate to lands zoned H-C4-78 and subject to holding provisions H1, H2 and H3.		